



File No.: EXP202301452

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 14/12/2022. The complaint is directed against the GENERAL COUNCIL OF NOTARIAT with NIF ***NIF.1 (hereinafter, the complained party or CGN). The reasons on which the complaint is based are as follows: the complainant states that in order to register on the Citizen Notarial Portal, it is necessary to provide a photograph of the ID card on both sides; he states that the request for such images is excessive and unnecessary, as electronic signature would suffice for identification and to carry out procedures with the notary.

Along with the complaint, he provides various screenshots showing the different steps taken by the complainant to register on the portal.

- In the section "NIF/NIE Document" of the user profile, the expiration date and the photo of the national identity document, as well as links with the text "Delete images" and "Renew images."
- It is also indicated that the option "I accept that the portal proceeds to verify my data with those in the National Police's DNI register" is selected. And below it states "Note: the expiration date of the DNI/NIE is requested for security reasons in order to carry out an online verification of the match of the data that exists about you in the National Police's DNI register. Registration on the portal will not be allowed in cases where such data do not match."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the aforementioned complaint was forwarded to the complained party/ALIAS, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 09/02/2023 as evidenced by the acknowledgment of receipt in the file.

The Data Protection Officer, the NOTARIAL CERTIFICATION AGENCY, S.L., responded on 03/03/2023 stating the following:

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1. That this data protection delegate of ANCERT has received a request transferring the same complaint from the claimant, in its entirety with the same content.
2. That the registration and operation process of the Citizen Notarial Portal (<https://www.portalnotarial.es>) complies with all security and data protection obligations and needs, as well as the applicable sectoral regulations related to the notarial function and the obligations of the notary and the notarial organization for the prevention of money laundering and the financing of terrorism. This portal has been certified in accordance with the National Security Scheme (hereinafter ENS). A copy of the certificate of compliance with the ENS with HIGH category dated initial compliance 07/01/2022 and renewal date 06/01/2024 is provided, relating to "The information systems that support the activities of: the services provided to the collective of Spanish notaries for the exercise of their public function from ANCERT."
3. That AGENCIA NOTARIAL DE CERTIFICACIÓN, S.L. is responsible for the technological development and maintenance of said portal.
4. That the use and retention of images of the identity document is entirely necessary for the notarial collective (General Council of Notaries and notaries) in application of the applicable regulations.

And it adds:

"[...]the request for images of identity documents from them, far from being 'unnecessary or excessive,' is a fundamental piece because it responds to a reason that is substantial for the notarial collective, which is the compliance with the obligations set forth in the regulations applicable to the public functions of the Spanish Notariat, specifically, the control of the identity of the applicants for notarial public services."

5. That in no case is it true that the citizen must provide a photograph of their ID card on both sides to carry out the voluntary registration process in the Citizen Notarial Portal. During the registration process, the user must complete a form in which they are required to accept the corresponding terms of use of the portal and the privacy policy for the processing of personal data. In this policy, it is stated that the General Council of Notaries is responsible for the processing, based on consent, of the data from that form, as well as those included in the ID images, if and only if, after that registration, they upload them to the portal as a prerequisite for requesting a service from a notary electronically. That in this policy it is indicated:

"The purpose of processing the data from the image of the national identity document or foreign identity card that, if applicable, the citizen provides in the 'Edit profile' section of the portal is to send it to the notary who will provide the service requested by the citizen, for the fulfillment of their public functions in accordance with the Law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of the portal users who have requested notarial services. In any case, once any notarial service requested by the citizen has been completed, they can at any time delete that from their profile."

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national identity document or foreign identity card, marking the box "Remove DNI/TIE"

6. And it is stated:

"[...] It is therefore clear that the condition of a registered user, accessing the portal through the corresponding credential system based on an identifier and a password generated during the registration process, allows only the user to navigate the portal for the purpose of enabling citizens to be aware of the services offered by the portal and also, exclusively, allowing a notary to send to the email designated by that registered user a request to conduct a videoconference to maintain a remote interview with them through the platform.

If additionally, the user wishes to request from a notary limited scope procedures, such as access to the personalized service for accessing the simple electronic copies uploaded by a notary to the citizen's private space on the portal, the General Council of Notaries has necessarily established the additional requirement of having identified themselves for access to the portal using one of the following three systems: 1) the Clave/PIN system established for the State Administrative Public Sector, 2) a qualified electronic certificate in accordance with the requirements established in Regulation (EU) No 910/2014 of the European Parliament and of the Council, of July 23, 2014, on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC (eIDAS Regulation), or, 3) the user accreditation system in person before a notary, by which an electronic certificate is generated for access to the portal.

And finally, if additionally, the user wishes to request from a notary the initiation of other specific notarial procedures offered by the portal, as a necessary condition for a registered user to initiate it, the General Council of Notaries has necessarily established the additional requirement of the obligation to upload images of their identity document to their private profile on the portal.

Thus, currently, the telematic procedures that a citizen can request from a notary, for which the platform will require them to have uploaded images of the identity document, can be divided into two possible scenarios:

A) It is a requirement to subsequently appear before a notary

To initiate the notarial service for processing the incorporation of a company or a will, the purpose of

the online procedure is to allow the citizen to send the necessary information and documentation to the notary through a secure channel to carry out the preparation of the corresponding public document, which must subsequently be authorized or intervened by the notary in the physical presence of the citizen.

B) It is not a requirement to subsequently appear before a notary

To request notarial services for processing simple electronic copies of deeds for mortgage moratorium, the request for any other simple electronic copy or authorized paper copy of deeds or the service

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of the legitimization of electronic signatures, the purpose of the service is to gather the necessary information and documentation to prepare the corresponding electronic public document that the notary will issue without requiring the subsequent physical presence of the citizen. Thus, in the case of requests for simple electronic copies or authorized paper copies of deeds granted by the citizen, once the identity control of the interested party or identification judgment has been carried out, who has claimed their legitimate interest, through their corresponding identity document, the notary will upload the issued simple copy to the citizen's private space on the portal or, if it is an authorized paper copy, will send it to the postal address indicated by the interested party in their request.

Therefore, in both scenarios, it is necessary to impose the obligation to upload images of the identity documents to the portal, with the purpose, as stated in the privacy policy, "to carry out the submission of the same to the notary who will provide the service requested by the citizen, for the fulfillment of their public functions in accordance with the Law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of the portal users who have requested notarial services." Thus, the General Council of Notaries, as the holder of the Notarial Electronic Headquarters, which is the electronic means established by the notarial organization for electronic intermediation between the notariat and the citizenry, is responsible for the processing of such images, as a necessary means to ensure compliance with the applicable sectoral regulations related to the notarial function and the obligations of the notary and the Notarial Organization regarding the prevention of money laundering and the financing of terrorism.

7. And it states:

"This measure is supported by Article 23 of the Notarial Law, which establishes that 'Notaries shall attest in public deeds and in those records that by their special nature require it that they know the parties or have ensured their identity by the supplementary means established in the laws and regulations.' And subsequently determining that 'The following shall be supplementary means of identification, in the absence of the personal knowledge of the Notary: ...

c) The reference to identity cards or documents with a photograph and signature issued by public authorities, whose purpose is to identify individuals. The Notary in this case shall be responsible for the consistency of the personal data, photograph, and signature affixed on the identity document presented, with those of the appearing party.'

The expression 'supplementary means' must be analyzed in the context of Article 23 of the Notarial Law, which resorts to such expression in the absence of the notary personally and directly knowing the person requesting the provision of their public function (knowledge by notoriety). In the case of online and remote actions, this option is non-existent, which is why resorting to the supplementary means (use of identification documents issued by a competent public authority) is the only possible one. Thus, in the specific non-presential scope of the Notarial Electronic Headquarters, beyond electronic identification through certificates for

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To access the electronic platform, it is necessary for this platform, by requiring the upload of identity documents for submission to the notary, to ensure and guarantee the fulfillment of the public functions of the notary, such as the prior identification control of the user requesting a public service, particularly in cases where the procedure does not require the subsequent presence before the notary for the corresponding signature of a notarial public document (when claiming a legitimate interest to request a copy of a deed). The objective of this is to prevent possible cases of fraud and identity theft, and therefore, the notary selected by the user can proceed to identify them securely before initiating the requested procedure. It is a measure, therefore, that precisely safeguards the protection of individuals concerning the processing of their personal data, as a fundamental right protected by Article 18.4 of the Spanish Constitution, thus ensuring, with the utmost certainty, that the notary will provide a technological service to the individual who claims to have a legitimate interest in requesting a notarial service, avoiding the possibility of error or identity theft.

And it is rightly in this line of reinforcing the security of the notary in the use of electronic means by the citizen where the Draft Law for the transposition of European Union Directives on the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registral actions emphasizes; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, currently in parliamentary process, which aims, among other aspects, to reform the Notary Law with the purpose, according to its explanatory memorandum, to:

"regulate an electronic protocol that reflects the matrices of public instruments, the possibility of motivated digital consultation of a general computerized unique index by the General Council of Notaries and public administrations, and the introduction of a new article that establishes the possibility of granting certain instruments through videoconference and electronic appearance, as well as provisions regarding security and archives."

It should be noted that Article 35.5 of said Draft Law adds a new Article 17.3, which recognizes and consolidates the Notarial Electronic Headquarters of the General Council of Notaries by configuring it as the unique national platform for corporate intermediation between the notary and the citizen:

"The notarial electronic headquarters will be integrated into the General Council of Notaries, being general and unique at the national level, and it will be responsible for its ownership, development, management, and administration. Its technical characteristics will be communicated to the Directorate General of Legal Security and Public Faith. It must be accessible and available to citizens through secure communication networks."

And it is through the indicated legal reform, in the process of approval, that the necessity for the notary for the citizen to submit their identity documentation through it for the electronic processing of notarial public services is established. Therefore, the aforementioned Article 23 of the Notary Law is amended by adding a new section 2, which expressly establishes that, within the scope of the Notarial Electronic Headquarters, the notary must always verify.

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the documentation submitted by the grantor for their identification and must also archive an electronic copy of the identity documents in compliance with the legislation on the prevention of money laundering and the financing of terrorism:

"2. The interested party may appear electronically at the operational notarial electronic headquarters at the corresponding electronic address, using the electronic identification systems provided for in Article 9 of Law 39/2015, of October 1, on Common Administrative Procedure of public administrations, and must provide their phone number, email address, and, where applicable, the data expressing their representation. The notarial electronic headquarters must allow the grantor to exercise their right to choose a notary in accordance with the applicable legislation, as well as to assess their legal capacity, ensuring electronic immediacy.

In any case, the notary will verify the documentation submitted for identification by the grantor and

may, with their consent, cross-check it with the information contained in the single index and the databases of the Ministry of the Interior. The notary will archive an electronic copy of the identity documents in compliance with the legislation on the prevention of money laundering and the financing of terrorism.

The interested party may, through electronic appearance:

- a) Provide the necessary background for the subsequent authorization of a notarial public document.
- b) Electronically grant the acts or legal transactions that are determined.
- c) Request that a simple or authorized copy be issued, subject to an assessment of their interest.
- d) Request, upon proving their legitimate interest, that the public notarial documents in which they may have intervened be identified, for the purpose of requesting the notary who holds the protocol, their substitute, or successor, to issue an authorized electronic copy.”

Please note, in this new legal framework, that electronic identification is limited to a procedure in which no official intervenes, but when it is necessary to appear before a notary, the identification carried out by the service provider when issuing the certificate will not be sufficient; rather, the notary, under their responsibility, must issue an assessment that links the appearing party with the digital identity medium presented at the precise moment of using that certificate, since the identity judgment that the notary performs is not limited to mere formal verification, but to the assessment that such a person is who they are and has the legal capacity and ability to conclude the notarial act they are requesting. If the notary does not consider the identity to be accredited, according to the draft Law, in accordance with the new Article 17 ter 5, “they must deny the intervention or authorization of the document,” or require physical appearance before them, according to Article 40 quinquies of the Capital Companies Act. For the notary to carry out this complementary control, Recital 22 of Directive 2019/1151 already allowed it to be done by “videoconferences or other online means that provide real-time audiovisual connection,” adding the eIDAS Regulation “that provide equivalent security in terms of reliability to physical presence,” and this has been so.

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recognized the Bill. In this way, the notary will be able to have the grantor before him and also have on screen a photograph of the individual, which can be obtained either by electronically extracting the digitized image of the individual from an electronic identification document or by means of the accreditation of their identity document at the Notarial Electronic Headquarters.

And precisely in relation to the reference to the preservation of the National Identity Document of the grantors indicated in the new article 23.2 of the Notary Law, it is highlighted and recognized again the current obligation of the notary to preserve said National Identity Document of the grantors of a public document protocolized or intervened by him, derived from his status as an obligated subject in accordance with the regulations on the prevention of money laundering and the financing of terrorism and, in particular, from articles 4.2, 6.1 a) and 6.4 of the Regulation implementing Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism, approved by Royal Decree 304/2014, of May 5. Article 25.2 of said Law and article 4.1 of Order EHA/114/2008, of January 29, regulating compliance with certain obligations of Notaries in the field of AML/CFT obligate Notaries to preserve copies of the identification documents of the grantors.

Let us remember that the evidentiary value of the DNI is attributed by its regulatory legislation, and in particular by article 8.1 of Organic Law 4/2015, of March 30, on the protection of citizen security and by article 1.2 of Royal Decree 1553/2005, of December 23, which regulates the issuance of the DNI and its electronic signature certificates, to the document itself and not to its mere reference or to the mere documentary record of its number.

Thus, it is essential for compliance with the obligations established in notarial legislation and in the prevention of money laundering and the financing of terrorism that, through the Notarial Electronic Headquarters, notaries maintain copies of the identification documents of the parties involved in the documents intervened or protocolized by the notaries. Therefore, when the channel for requesting and

processing notarial services used by the citizen is that of the Notarial Electronic Headquarters, the citizen must upload to the platform such identity documents for their submission to the notaries, in compliance with the specific applicable regulations.

As can be seen, the General Council of Notaries, as the data controller, carries out the processing of personal data that forms the images of the identity documents, described in the claim, in full compliance with personal data protection legislation, completely lacking any basis for the claim made, which should inevitably lead to the inadmissibility of the claim.

[...]

Likewise, in the response to the transfer of 03/03/2023, another response document prepared by ANCERT as DPO of the responding party is attached, in which it indicates that, "The commercial entity Agencia Notarial de Certificación, S.L.U. (hereinafter "Ancert"), with NIF B83395988, represented by B.B.B., acting in its capacity as Data Protection Delegate of the General Council of

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Notary, whose designation was duly notified to the Spanish Agency for Data Protection, appears and STATES:

(...)

Well, in relation to this content of the complaint, transferred to this data protection delegate of the General Council of Notaries, and evaluating its content, we must express, as will be succinctly outlined throughout this document, that the registration and operation process of the aforementioned Citizen Notarial Portal (<https://www.portalnotarial.es>) complies with each and every one of the obligations and needs for security and data protection, as well as the applicable sectoral regulations regarding notarial functions and those related to the obligations of the notary and the notarial organization in terms of preventing money laundering and the financing of terrorism.

It should also be indicated that this data protection delegate, who is also responsible for the technological development and maintenance of said portal, has continuously supervised the technical and functional requirements established for its registration and operation, including the obligation to upload images of the identity documents required for the request of public services from notaries, reaching the conclusion, at all times, that the use and preservation of such images by the portal is entirely necessary for the notarial collective, the General Council of Notaries, and notaries, in application of the applicable regulations outlined in the body of this document. Furthermore, we indicate that this technological portal, like the rest of the electronic services developed by Ancert for said Council, has been duly certified in accordance with the National Security Scheme [the corresponding certificate is attached, marked as document no. 1].

THIRD: On 14/03/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, having knowledge of the following points:

On 20/10/2023, it was verified regarding the portal www.portalnotarial.es (hereinafter, the portal):

1. That there is a registration manual as a citizen on the portal. That in said manual it states:

a. That from the portal one can:

- i. contract electronic services with any notary and request appointments for consultations.
- ii. track and view the progress of the contracted services.

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iii. consult the simple and authorized copies that have been requested from the notary.

iv. consult the notifications received from the notary office.

v. modify your user profile data (email, phone, address, etc.).

b. That in the registration process it is stated that a form must be filled out with mandatory identifying data of the person registering, which includes user type, document type, document number, nationality, expiration date of DNI/NIE, first name, first surname, second surname, gender, date of birth. Additionally, some mandatory data regarding the user's postal address and contact information must be provided.

Next, there is a step for mobile phone verification by sending an SMS with a code. Following this verification, the text "Registration completed" appears.

Subsequently, there is another step for email verification, without which the portal cannot yet be used.

c. That, once registered, to access the portal, the DNI/NIE number and password can be entered (option called "Credentials"), or a certificate can be used, or Cl@ve PIN.

d. And it states:

"It is important to highlight that not all access modalities will allow you to access in an accredited manner, so the functionalities of the portal may be limited. We recommend that you access in accredited mode to enjoy all the functionalities that the Portal offers you.

Accredited access

Access with credentials: when you have been accredited in person at the notary and therefore access with a notarial certificate.

Access via a certificate issued by entities included in the Spanish TSL

Access via Cl@ve PIN

Non-accredited access

Access with credentials without having been accredited in person at the notary. Access is with the registration credentials, but not with a notarial certificate."

And it states that in the Spanish TSL there are entities such as Camerfirma, Ancert, Fábrica Nacional de La Moneda y Timbre, among others.

2. That during the registration process on the portal, it is verified that a form must be filled out with mandatory identifying data of the person registering, which includes exclusively user type, document type, document number, nationality, expiration date of DNI/NIE, first name, first surname, second surname, sex, date of birth, password. Additionally, some mandatory data regarding the user's postal address must be provided, such as street name, municipality, province, postal code, as well as the mandatory mobile phone and email data.

It is stated that the terms and conditions of the service must be accepted, as well as the privacy policy. Information about data protection is displayed on the screen, with the responsible party for the processing being the GENERAL COUNCIL OF NOTARIAT.

And below there is a "Register" button.

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3. That in the terms and conditions of the service it states:

"(...)

3. Access Systems to the Portal

The identification systems for access to the portal that registered Users can use are as follows:

Login and password

Certificates issued by qualified certification service providers included in the 'Trusted List of Certification Service Providers' (TSL) established in Spain.

Certificates issued by the Notarial Certification Agency, SLU (Ancert) in the cloud exclusively for

citizens to access the service of publication and consultation of electronic copies of notarial documents requested from the notary by the same.

4. Registration to the portal

The User may register on the Citizen Notarial Portal, being mandatory for such registration to be of legal age. To do so, they must enter the personal contact data, providing all the information indicated as mandatory.

(...)"

4. That in the privacy policy it states:

"Privacy Policy

This Privacy Policy aims, under the General Data Protection Regulation and national Data Protection regulations, to provide citizens ("users") with the necessary information on data protection collected on the website <http://www.portalnotarial.es> (hereinafter, the Citizen Notarial Portal of the General Council of Notariat or the "Website").

I. Identity and contact details of the data controller and the data protection officer

1. Identity and contact details of the data controller

Identity: General Council of Notariat

Postal address: Calle Silvano, nº 55, 28043 Madrid

Phone: (34) 91-3087232

Email: info@notariado.org (<mailto:info@notariado.org>)

2. Identity and contact details of the data protection officer

Identity: Notarial Certification Agency, S.L., Unipersonal

Postal address: c/ Campezo, nº 1, Building 6, pl. Z, (28022) Madrid

Phone: (34) 912187676

Email: dpoancert@notariado.org (<mailto:dpoancert@notariado.org>)

II. Purpose of the processing

The purpose of the data provided in the registration form for the Citizen Notarial Portal is to provide the service of such registration of citizens so that they can request the public services of notaries through the applications included in the portal, as well as to send them communications of information and updates from the Portal in case they have expressly requested it in the "Contact Data" section of the registration form, by checking the box "I wish to receive information and updates" or in the "Edit profile" section. To unsubscribe from...

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To unsubscribe from this service, the user must access the "Edit Profile" section and check the box "I do not wish to receive information and updates." If this option is activated, interested parties may also communicate their desire not to receive such communications to the Citizen Notarial Portal of the General Council of Notaries in the manner indicated in the electronic communications sent to users.

The purpose of processing the data from the national identity document or foreign identity card provided by the citizen in the "Edit Profile" section of the portal is to send it to the notary who will provide the service requested by the citizen, in order to fulfill their public functions in accordance with the law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of portal users who have requested notarial services. In any case, once any notarial service requested by the citizen has been completed, they may at any time delete the national identity document or foreign identity card from their profile by checking the box "Delete DNI/TIE"

[...]

5. Access to the portal is granted with a previously registered user, authenticating through the only existing option of "certificates" where the text "all certificates issued by entities included in the Spanish TSL are accepted" is stated. The user is directed to a screen to accept the Terms and Conditions of the service.

a. Subsequently, the user accesses the portal, where the following procedures are listed:

- i. Request a copy of notarial documents.
- ii. Request a new appointment.
- iii. Access an appointment via videoconference.
- iv. Incorporation of companies.
- v. Management of copies.
- vi. Signature legitimization.
- vii. Sending simple copies for moratorium.
- viii. Mortgage loans.
- ix. Will.
- x. Find your notary.

b. The registered user profile contains exclusively the data of password, NIF number, date of birth, nationality, postal address, contact details, notification channel, expiration date of NIF/NIE, and other documentation which remains without attached documentation. In the "NIF/NIE Document" section, no document is attached, and there is a link "Renew images."

c. When asking the virtual assistant of the portal "Do I need to upload a copy of my ID to the platform?", it responds:

"If when trying to carry out any procedure from the Citizen Portal, it asks you to attach a copy of your ID, it is because in order to carry out the procedures from the Portal, it is necessary that you have uploaded a copy of your ID to your Portal profile. To do this, you must access the Portal, at the top right of the screen, where your name appears, through the option to *edit profile*, access the section "ID Document/NIE", and the button "Renew images" appears."

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upload them in png format and click on "Save changes." When accessing the profile again, the attached images will be visible; if not, they have not been attached correctly."

d. That the instructions for accessing an appointment via videoconference are to check that the appropriate equipment is available (checks for operating system, microphone, and camera). On the day of the appointment, access the "My Appointments" section and click the "Start Appointment" button. In the case of a videoconference without a prior appointment, after receiving an SMS on the mobile phone, one must access the "My Messages" section of the portal and click the "Enter" button.

e. That access is granted to the "Find Your Notary" service. It is stated that entering the postal code is mandatory and optionally the name and/or surname of the notary. Click on the "Search" button, and a list of found notaries will be displayed.

f. That access is granted to the "Company Formation" service where the text states, "With the advice of the Notary, you can form a company in the most suitable way for your activity according to current regulations." When clicking on the "Start Application" button, a message appears with the text "Identity document required. To start this procedure, you must upload images of your identity document."

g. That, in the "Copy Management" menu, the following text is included: "From Copy Management, you can request from your notary any management related to the copies of your deeds. Currently, the request for electronic simple copies from the notaries who hold your protocols is available for their subsequent secure deposit in the "My Copies" space of this headquarters or to process their sending to your bank office in relation to the request for a mortgage moratorium. The request for authorized copies for collection at the notary's office or postal delivery is also available." There are three services listed: "Copies for mortgage moratorium," "My Copies," and "Copy Requests." Access is granted to the "Copy Request" service where the text states, "Request your copies from the notary for any administrative management in which you may need one." When clicking on the "Start Application" button, a message appears with the text "Identity document required. To start this procedure, you must upload images of your identity document."

h. That access is granted to the "Signature Legitimization" service where the text states, "This service allows you to send your documents to be legitimized before a notary with all guarantees of authenticity

for their presentation before the administration.” When clicking on the “Start Application” button, a message appears with the text “Identity document required. To start this procedure, you must upload images of your identity document.”

i. That access is granted to the “Mortgage Loans” service where the text states, “The Law on Real Estate Credit Contracts, in force since June 16, 2019, grants you the right and the duty to choose the notary you prefer to execute the public deed of your loan.” When clicking on the “Select Your Notary” button, a message appears with the text “You have no pending loans for notary assignment.”

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j. Accessing the “Wills” service where the text states “With the advice of the Notary, you can decide how your assets, rights, and obligations can be distributed when you pass away.” Upon clicking the “Start application” button, a message appears with the text “Identity document required. To start this procedure, you must upload images of your identity document.”

FIFTH: On 14/03/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged violations of articles 6.1, 13, and 38.6 of the GDPR, classified under articles 83.5.a), 83.5.b), and 83.4.a) of the GDPR.

SIXTH: On 15/03/2024, the complainant submitted a document withdrawing their complaint.

SEVENTH: After being notified of the initiation agreement, the respondent requested on 18/03/2024 an extension of the deadline for submissions and a copy of the file; the copy was provided, and the deadline was extended by a document from the instructor dated 03/04/2024.

On 08/04/2024, the respondent submitted a document of allegations in which, in summary, they stated: first, a series of considerations regarding the notarial electronic headquarters and the notarial portal, differentiating between the entry into force of Law 11/2013 and the situation prior to it; the legal basis for the processing of the interested party's ID card data; considerations on the violations of articles 6.1 and 13 of the GDPR; regarding the alleged violation of article 38 of the GDPR and the request for the file to be archived.

EIGHTH: On 27/12/2024, it was agreed to open a period for the practice of evidence, agreeing to the following:

- To consider the complaints filed by the complainants and their documentation, the documents obtained and generated by the Inspection Services that are part of the file as reproduced for evidentiary purposes.
- To consider the allegations to the initiation agreement presented by the respondent as reproduced for evidentiary purposes.

NINTH: On 07/02/2025, a Proposal for Resolution was issued stating that the Presidency of the AEPD declared that the respondent had violated articles 6.1, 13, and 38.6 of the GDPR, classified under articles 83.5.a), 83.5.b), and 83.4.a) of the GDPR.

Upon notification of the Proposal for Resolution on 10/02/2025, the respondent requested a copy of the file and an extension of the deadline for allegations; the copy was sent, and the deadline was extended to two days.

TENTH: On 24/02/2025, the respondent submitted a document of allegations summarizing the following: the account of the Proposal and the omission of actions developed by the CGN; regarding the alleged separation of the notary's legitimacy and that of the CGN; regarding the interpretation made concerning notarial regulations and the prevention of money laundering; regarding the legality of the data processing carried out by the CGN based on the consent of the interested party; request for the file to be archived.

From the actions taken in this procedure, the following have been established:

PROVEN FACTS

FIRST. The complainant filed a complaint with the Spanish Agency for Data Protection on 14/12/2022 against the respondent, stating that to register on the Citizen Notarial Portal, a photograph of the ID card must be provided on both sides; the complainant considers that the request for such images is

excessive and unnecessary and that it violates regulations on the protection of personal data.

SECOND. Screenshots of the Citizen Notarial Portal have been provided, documenting the different steps taken by the complainant to register on the portal.

THIRD. A screenshot of the Portal related to the "NIF/NIE Document" of the user profile, the expiration date, and the photo of the national identity document has been provided, as well as links with the text "Delete images" and "Renew images."

FOURTH. A screenshot is provided where the option "I accept that the portal proceeds to verify my data with those in the National Police's DNI registry" is selected. Below it states, "Note: the expiration date of the DNI/NIE is requested for security reasons to perform an online verification of the match of the data held about you in the National Police's DNI registry. Registration on the portal will not be allowed in cases where such data do not match."

FIFTH. Screenshots of the PNC define the provision of notarial services that can be attended:

- i. Request a copy of notarial documents.
- ii. Request a new appointment.
- iii. Access an appointment via videoconference.
- iv. Incorporation of companies.
- v. Management of copies.
- vi. Signature legitimization.
- vii. Sending simple copies for moratorium.
- viii. Mortgage loans.
- ix. Will.
- x. Find your notary.

At least for access to the services "Incorporation of Companies," "Management of Copies," "Signature Legitimization," and "Wills," it was necessary to upload images of the ID card to initiate the procedure.

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SIXTH. It is recorded that the diligence of the acting inspector dated 01/11/2024 states "to record that as of today, the following documentation obtained from www.boe.es is incorporated into the inspection proceedings of reference:

1. Annex 1. Notary Law of May 18, 1862.
2. Annex 2. Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry acts; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials."

SEVENTH. It is recorded that the diligence of the acting inspector dated 10/20/2023 states "to record that as of today, the following documentation obtained from the Notarial Portal of the Citizen www.portalnotarial.es after clearing cookies and cache and using the Firefox browser is incorporated into the inspection proceedings of reference:

1. Annex 1. Registration manual on the Portal.
2. Annex 2. Registration form.
3. Annex 3. Terms and Conditions of the Service.
4. Annex 4. Privacy Policy.
5. Annex 5. Website www.portalnotarial.es
6. Annex 6. Access process to the Portal, with a previously registered user, by clicking on "Access" and identifying with a digital certificate.
7. Annex 7. Website after accessing the Portal with a digital certificate with a previously registered user in the Portal.
8. Annex 8. Complete user profile.
9. Annex 9. Question to the virtual assistant of the Portal about when it is necessary to provide a copy

of the ID card.

Subsequently, access to different services offered by the Portal:

10. Annex 10. Access to "My appointments." Instructions on how to access an appointment via videoconference.

11. Annex 11. Service "Find your Notary." Notary search.

12. Annex 12. Service "Company Formation." Resulting page when clicking on "Start Application."

13. Annex 13. Service "Copy Management" => "Copy Requests." Resulting page when clicking on "Start Application."

14. Annex 14. Service "Signature Legitimization." Resulting page when clicking on "Start Application."

15. Annex 15. Service "Mortgage Loans." Resulting page when clicking on "Select your notary."

16. Annex 16. Service "Wills." Resulting page when clicking on "Start Application."

EIGHTH. On 07/11/2024, the defendant party submitted a Certification stating that in the plenary session of 04/24/2024, the appointment of C.C.C. as DPD of the CGN was agreed upon.

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NINTH. An expert report dated 06/10/2024 has been submitted regarding the treatment of the copy of the ID card in the Notarial Portal of the Citizen, concluding the following:

"After reviewing the treatment of the copy of the ID card for all services offered to citizens through the Notarial Portal of the Citizen and the intervention by notaries through Signo, it is concluded that after the execution of the improvement project of the Notarial Portal of the Citizen application with the aim of minimizing the treatment of the copy of the ID card, such treatment has been limited solely to the service of "Videoconference for electronic authorization" of the Notarial Portal of the Citizen only when the citizen has a valid appointment, necessary to comply with the requirements established in Law 11/2023.

Thus, it is certified that the General Council of Notaries, holder of the Notarial Portal of the Citizen, can only process the ID data (NIF/NIE) to provide the technological service of making it available to the notary who has scheduled an appointment for a "Videoconference for electronic authorization," and it is not possible for that data to be accessed or manipulated except for that provision, since there is no management application for the ID cards, there are no authorized users who can access them, neither by the General Council of Notaries nor by the Technological Center of Notaries that administers the Portal, and therefore technically it cannot be accessed to carry out any action related to the ID cards, that is, they cannot be viewed or extracted, since it is the system itself that redirects the image to the Notary once the appointment is accepted, unless it concerns necessary interventions to resolve technical incidents due to a malfunction of the aforementioned technological service."

TENTH. It is recorded in the Privacy Policy document, section I, point 1. Identity and contact details of the data controller:

Identity: General Council of Notaries, along with postal address, phone number, and email.

ELEVENTH. The Notarial Portal collects the following data: type of user, type of document, document number, nationality, expiration date of ID/NIE, name, first surname, second surname, sex, date of birth, password, postal address of the user (street name, municipality, province, postal code), mobile phone, and email.

In the Form, there are two checkboxes to mark, accepting both the Terms and Conditions of the service and the Privacy Policy.

☐ I have read and accept the Terms and Conditions of the Service.

☐ I have read and accepted the Privacy Policy.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law."

III

Response to the Allegations Against the Initiation Agreement

1. Firstly, the accused party refers to the existence of a different regulation affecting the Notarial Electronic Headquarters as well as the Notarial Portal as a consequence of the entry into force of Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain...

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products and services, migration of highly qualified persons, tax matters, and digitization of notarial and registry actions; and that in accordance with section 5 of its Additional Provision Eighteenth, it came into effect on 09/11/2023.

In Article 17.3 of the Notarial Law, a section introduced by Law 11/2023, it is established that the notarial electronic headquarters will be integrated into the General Council of Notaries, being general and unique at the national level, and corresponding to it the ownership, development, management, and administration. Its technical characteristics will be communicated to the General Directorate of Legal Security and Public Faith. It must be accessible and available to citizens through secure communication networks.

However, despite the modifications introduced by the aforementioned law, effective from 09/11/2023, the facts that are the subject of the claim occurred prior to the entry into force of the modifications

introduced by Law 11/2023.

Thus, the situation before these modifications regarding the Notarial Law (LN) was as follows:

Article 23 of the Notarial Law provided that:

“1. Notaries shall attest in public deeds and in those records that by their special nature require it that they know the parties or have ensured their identity by the supplementary means established in the laws and regulations.

The supplementary means of identification, in the absence of the Notary's personal knowledge, shall be the following:

- a) The affirmation of two persons, of legal age, who know the grantor and are known to the Notary, being those responsible for the identification.
- b) The identification of one of the contracting parties by the other, provided that the Notary attests to the knowledge of the latter.
- c) The reference to identity cards or documents with a photograph and signature issued by public authorities, whose purpose is to identify individuals.

In this case, the Notary shall be responsible for the concordance of the personal data, photograph, and signature stamped on the identity document exhibited, with those of the appearing party.

d) The comparison of the signature with the undisputed one from a previous public instrument in which the Notary had attested to the knowledge of the signer.

The Notary who attests to the knowledge of any of the grantors, misled about their identity by their own malicious actions or those of others, shall not incur criminal liability, which shall only be demanded when it proceeds with intent. In such a case, the Notary, without prejudice to the above, shall be immediately subjected to a disciplinary correction procedure with the obligation to compensate for the damages caused by such error to third parties interested.

If it concerns public deeds relating to acts or contracts by which ownership and other real rights over real estate are acquired, declared, constituted, transmitted, encumbered, modified, or extinguished, or to any others with...

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Tax relevance, the appearing parties shall provide before the authorizing Notary their tax identification numbers and those of the persons or entities they represent, which will be recorded in the deed.

In the case of public deeds by which an entity is created or constituted, with or without legal personality, the Notary shall mandatorily include the tax identification number in those deeds. Prior to the authorization or intervention of any public deed, record, or policy, the Notary shall consult the list of revoked tax identification numbers. The Notary must refrain from authorizing or intervening in any public instrument intended to be granted by a legal entity with a revoked tax identification number in accordance with the provisions of tax regulations.

On the other hand, Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism (LPBCFT), applies to notaries as established in its Article 2, Obligated Subjects, in its section 1, as follows:

1. This Law shall apply to the following obligated subjects:

(...)

n) Notaries and registrars of property, commercial registrars, and movable property.

(...)

And in its Article 3, "Formal Identification," sections 1 and 2, as follows:

“1. The obligated subjects shall identify all natural or legal persons with whom they intend to establish business relationships or intervene in any operations. Under no circumstances shall the obligated subjects maintain business relationships or carry out operations with natural or legal persons who have not been duly identified. The opening, contracting, or maintenance of accounts, savings books, safety deposit boxes, assets, or numbered, coded, anonymous instruments, or with fictitious names is particularly prohibited.

2. Prior to establishing the business relationship or executing any operations, the obligated subjects shall verify the identity of the parties involved using reliable documents. In the event that it is not possible to verify the identity of the parties involved using reliable documents at first, the provisions of Article 12 may be considered, unless there are risk elements in the operation. Regulations shall establish the documents that must be deemed reliable for identification purposes.”

Regarding the retention of the identification documents used by the obligated subjects to identify their clients, Article 25 of the LPBCFT establishes that:

“2. The obligated subjects, with the exceptions determined by regulation, shall store copies of the identification documents referred to in Article 3.2 on optical, magnetic, or electronic media that guarantee their integrity, the correct reading of the data, the impossibility of manipulation, and their adequate preservation and location.

(...)”

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On its part, the Regulation of the LPBCFT, in its article 28, establishes that:

“1. The obligated subjects shall retain all documentation obtained or generated in application of the due diligence measures, including, in particular, copies of the authentic identification documents, the client’s declarations, the documentation and information provided by the client or obtained from reliable independent sources, the contractual documentation, and the results of any analysis carried out, for a period of ten years from the termination of the business relationship or the execution of the occasional operation.

2. The obligated subjects shall store copies of the authentic identification documents in optical, magnetic, or electronic media.

As previously mentioned, Law 11/2023, of May 8, transposing European Union Directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions, modifies article 23 of the Notarial Law by introducing a new section (2) drafted as follows:

“2. The interested party may appear electronically at the operational notarial electronic headquarters at the corresponding electronic address, using the electronic identification systems provided for in article 9 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and must provide their phone number, email address, and, where applicable, the data expressing their representation. The notarial electronic headquarters must allow the grantor to exercise their right to choose a notary in accordance with the applicable legislation, as well as the assessment of their legal capacity, ensuring electronic immediacy.

In any case, the notary shall verify the documentation sent for identification by the grantor and may, with their consent, cross-check it with the information contained in the unique index and the databases of the Ministry of the Interior.

The notary shall archive an electronic copy of the identity documents only in cases where required by the legislation on the prevention of money laundering and the financing of terrorism.

The interested party may, through electronic appearance:

- a) Provide the necessary background for the subsequent authorization of a notarial public document.
- b) Electronically grant the acts or legal transactions that are determined.
- c) Request that a simple or authorized copy be issued, subject to the assessment of their interest.
- d) Request, upon proving their legitimate interest, that the notarial public documents in which they may have intervened be identified, for the purpose of requesting the notary who safeguards the protocol, their substitute, or successor, to issue an authorized electronic copy.”

It is true that this new section regulates that interested parties may appear at the notarial electronic headquarters using the means.

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identifiers provided for in Article 9 of Law 39/2015; but it is also true that in relation to the identification and preservation of identifying documents of the interested parties involved in notarial acts, nothing changes, since the notary, in accordance with notarial legislation, is the one who must verify the documentation submitted for identification by the grantor, that is, the interested party gives their consent before the notary to the specific legal transaction, and must contrast it with the information contained in the single index and the databases of the Ministry of the Interior; but in no case is the General Council of Notaries authorized to keep a copy of the ID cards, as the only one obligated to preserve the electronic copy of the identity document is the notary.

Nor does the introduction by Law 11/2023, of May 8, of a new article in the LN, Article 17 ter, which aims to facilitate digital communication between the notary and the interested party who requires some notarial service, affect the claimed facts, offering the possibility of holding a videoconference in an appropriate, private, and secure environment, guaranteeing confidentiality in communications, in accordance with the new subsection (2) of Article 23, stating:

“1. The granting and authorization may be carried out through videoconference as a means for the exercise of the notarial public function, in the following acts or legal transactions:

- a) Commercial policies. In this case, the sending of the policy by the credit institution to the notarial electronic headquarters will imply its consent to the documented transaction, unless otherwise provided in the text of the policy.
- b) The incorporation of companies, appointments, and commercial powers of all kinds provided for in commercial legislation, as well as the granting of any other corporate act, provided that in the case of contributions from partners to the share capital, they are monetary.
- c) Powers of procedural representation, for action before public administrations, as well as electoral powers, and powers for specific acts. It will not be possible to authorize general or preventive powers by videoconference.
- d) The revocation of powers, except for preventive general powers.
- e) Payment letters and cancellations of guarantees.
- f) Minutes of the general meeting and those of reference in the strict sense.
- g) Testimonies of signature legitimization.
- h) Wills in a declared epidemic situation while the obligation of confinement lasts.
- i) Declarations of new work without the extinction of condominium or property allocation, and the division of horizontal property.
- j) Conciliation, unless the notary considers the physical presence necessary for the proper completion of the file.
- k) Those acts and legal transactions for which, according to their nature, it is established by regulation.

2. The grantor will access the application open at the notarial electronic headquarters using the electronic identification systems provided for in Article 9 of Law 39/2015, of October 1, on Common Administrative Procedure of the

Public Administrations. This application must guarantee the principles of technological neutrality and interoperability for all those who access its use.

3. At the time of granting via videoconference, the notary must present the document to the appearing party through the platform, so that they can exercise their right to read it, without prejudice to the alternative reading by the notary and the advice that must be provided regarding its content.

4. If the grantor does not have an electronic signature, they may be provided with one free of charge, in accordance with the means provided in Article 10 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations. The provided system must limit its scope and

validity to the public document subject to authorization or intervention.

5. The notary must deny the intervention or authorization of the document when the prerequisites established in the Notary Law are not met.

6. Finally, the notary will authorize the document with their qualified electronic signature.

2. Secondly, the responding party alleges what the legal bases are for the processing of the DNI data. It should be noted that in the document Privacy Policy of the responding party, in its section Legitimization of processing, it states that "The legal basis for the processing of personal data is the consent of the citizens to their processing."

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, particularly when it is necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not prevail over the interests or fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

It was already pointed out in the initiation agreement that Article 6.1 of the GDPR incorporates the legal bases that legitimize the processing of personal data, referring to the one indicated in paragraph c) that processing is necessary for compliance with a legal obligation applicable to the data controller; in addition to the previous one, the ones indicated in letters a) and b) of Article 6.1 must be considered, the processing based on the consent of the data subject and the processing necessary for the execution of a contract in which the data subject is a party.

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In relation to the legal basis indicated in letter c) of article 6.1 of the GDPR, it would stem from the existence of legal obligations derived from article 25 of the LPBCFT.

In accordance with the aforementioned provisions and as stated by the AEPD in Report 172890/2018 regarding the cited legal bases: "In any case, the notary, when a client comes to their professional office to perform a notarial act, for example a deed, must identify the client. This, which is obvious, is subject to a triple regulation, depending on the aspect from which it is viewed. It is subject to notarial legislation, it is also subject to anti-money laundering regulations, and finally, it should be added that it is also subject to data protection regulations.

Regarding the first of the mentioned aspects, notarial legislation requires that notaries certify in public deeds that they know the parties or have ensured their identity by the supplementary means established in the laws and regulations (art. 23 LN). In fact, notarial legislation does not require the notary to keep a copy of the supplementary identification means they may use, since the same legislation establishes that it is sufficient for the notary to affirm that they know the parties, for which they may use the DNI or other means. Thus, the supplementary identification means are only "in the absence of the personal knowledge of the notary."

In the LPBCFT, on the contrary, according to what is indicated in the aforementioned Report, it states that "The anti-money laundering regulations, on the other hand, are based on the premise that the identification of the parties appearing before the notary must take place, with the document serving for such identification being retained. Article 3.1 of the LPBCFT establishes that obligated subjects, among which are notaries and registrars, will identify all natural or legal persons who intend to establish business relationships or intervene in any operations. The verification of the identity of the participants will be carried out through authentic documents. And Royal Decree 304/2014, of May 5, which approves the Regulation of the law on the prevention of money laundering and the financing of terrorism (RPBC), has established that an authentic document is the DNI (art. 6.1 RPBC) for

individuals of Spanish nationality, although exceptionally, other personal identification documents issued by a governmental authority may be accepted as long as they have adequate authenticity guarantees and include a photograph of the holder (for example, a passport). Article 28 of the RPBC requires that obligated subjects retain all documentation obtained, specifically including copies of the authentic identification documents, for ten years.”

Therefore, the notary must verify the documentation submitted for the identification of the interested party and, with their prior consent, cross-check it with the information in the single index and the databases of the Ministry of the Interior and proceed to retain an electronic copy of the identity documents only in those cases required by the anti-money laundering and terrorism financing legislation.

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Well, as already pointed out in the initiation agreement, the legislation on the prevention of money laundering and the financing of terrorism is not applicable to all operations in which notaries are involved, being excluded all notarial and registral operations that lack economic or patrimonial content or that are not relevant for the purposes of preventing money laundering and the financing of terrorism (STS of February 2, 2022, R.C. 86/2021).

In this regard, the aforementioned Report indicated that “Regarding all these operations, there would be no obligation to retain the ID cards, as they are excluded from the legislation that specifically establishes this. Likewise, Article 4.1 of the RPBC states that the obligation to identify and verify the identity of the appearing parties through reliable documents will exist when the operations have an amount equal to or greater than €1,000 (except in the case of payment of lottery prizes and gambling winnings, in which case the amount will be equal to or greater than €2,500). Therefore, since in these cases there is no obligation to identify and verify the reliable document, there will also be no obligation to retain it.

In the second of the cited exceptions, even if the operations are subject to the regulations on prevention and money laundering by amount or nature, there are individuals who, although they participate in the corresponding notarial acts and must be identified, are not subject to a legally imposed obligation to retain their reliable identification documents. This is the case for witnesses, for example. Thus, Article 3.1 of the LPBC restricts the obligation of formal identification by the obligated subjects (that is, by the notary) to individuals or legal entities that intend to establish business relationships or participate in any operations. This definition includes only the main parties whose rights and obligations will be directly affected as a result of the stipulations contained in the deed, not witnesses and similar cases. Thus, Order EHA/114/2008, of January, regulating compliance with certain obligations of notaries in the field of prevention of money laundering, which predates the RPBC but remains in force as long as it does not oppose the provisions therein (see the sole derogatory provision of the RPBC), establishes in its Article 2 that the notary will identify “their clients.” The same article refers to “the grantors.” Likewise, regarding the obligation to retain identification documents, this obligation is only predicated concerning the persons required to be identified according to the regulations on the prevention of money laundering, and not regarding others, such as witnesses.

Entering into the realm of data protection regulations, it should be noted that when the notary identifies a person by their identity document, they are performing a processing of personal data, in the sense established in Article 4.2 of the GDPR: “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, limitation, erasure or destruction;

The processing of personal data, as it constitutes per se an infringement of a fundamental right (Article 18.4 CE), is subject to a series of regulations.

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principles, such as the principle of purpose limitation, according to which personal data shall be collected for specified, explicit, and legitimate purposes and shall not be further processed in a manner incompatible with those purposes; or the principle of data minimization, according to which personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed; and lastly, the principle of accuracy, according to which personal data shall be accurate, and, where necessary, kept up to date.

Likewise, the processing of personal data requires a legal basis to consider that it is processed in accordance with the principle of lawfulness, as otherwise its use would be unlawful. In the specific case we are dealing with, where the processing is carried out by a notary, it can be thought that an appropriate legal basis for the processing will be that established in Article 6.1 a) GDPR, the consent of the client, or b) that is, when the processing is necessary for the performance of a contract to which the data subject is a party, as the notarial function can be classified as a service contract. However, the processing necessary for the execution of that contract is the identification of the client based on the notarial legislation itself, which does not require the processing of personal data such as the retention of the ID card, as we have seen, since this obligation of retention derives from the regulations on the prevention of money laundering. Consequently, an appropriate legal basis for the retention of the ID card would be that established in Article 6.1.c) GDPR, that is, when the processing is necessary for compliance with a legal obligation to which the data controller (the notary) is subject. Therefore, while the processing of personal data consisting of the identification of individuals would be lawful both because it is necessary for the execution of a contract and because it is imposed by notarial legislation, the processing of personal data consisting of the retention of the ID card would only be lawful when specifically established by law, which, as we have seen, does not impose it in all cases, but only when it concerns "clients," that is, individuals who are going to be part of legal relationships, and this only in cases where the regulations on the prevention of money laundering are applicable. For this reason, outside the cases provided for in the aforementioned regulations, the retention of such identifying documents will require another basis of legitimacy distinct from "compliance with a legal obligation" contemplated in Article 6.1.c) since there is no obligation to retain copies of identifying documents in the indicated cases.

Moreover, the obligation to retain the digitized copy of the ID card is enforceable against notaries and not against the General Council of Notaries, which will require a legal basis to legitimize this processing operation.

Thus, from the above, it follows that the General Council of Notaries did not have a basis of legitimacy to retain copies of the ID cards.

3. Regarding the infringement of Article 13 of the GDPR, the party being claimed acknowledges in some way the violation of the aforementioned article, because how should the proposal to review the existing content in the Privacy Policy to make it compatible with the cited article be understood?; it also points out that the AEPD admits

the legality based on compliance with a legal obligation and proposes that the interested party unequivocally consents to the retention of the copy of the DNI in the Notarial Electronic Headquarters so that it may be made available to the notary before whom the granting or authorization of any other act or transaction in which it is necessary is intended.

Thus, the responding party states that it has modified the information provided to users of the portal, and affirms that regarding the retention of copies of DNIs, the following will be indicated:

In the purpose section, it will include: (iii) Likewise, the Citizen Notarial Portal will retain a copy of your

National Identity Document if, after the granting or authorization mentioned in the previous section, you provide your consent for such retention solely for the purpose of allowing the copy to be sent to the same or another notary when necessary for the granting or authorization of any other act or legal transaction for which such a copy is required. For this, it will be necessary for you to express this by checking the box that will be shown to you at that moment.

In any case, if you provide your consent, the data will be retained in the Portal duly encrypted, so that neither the General Council of Notaries nor any notary who has not participated in the granting or authorization of an act or transaction requested by you can access it.

At all times, you may revoke your consent by checking the "Delete DNI" box within your profile.

And in the purpose section, it will state: "(iii) The legal basis for the processing for the purpose numbered as (iii) will be the consent provided by you, which you may revoke at any time."

They add that likewise, an express consent box will be included for the processing of data corresponding to copies of the DNI or equivalent document.

However, regarding this matter, it should be noted that at the time of the events being claimed, the situation was different; in the response provided by ANCERT on 03/03/2023 to the transfer of the complaint, it was stated that: "(...) And finally, if the user also wishes to request a notary to initiate other specific notarial procedures offered by the portal, as a necessary condition for a registered user to initiate it, the General Council of Notaries has necessarily established the additional requirement of the obligation to upload images of their identity document to their private profile on the portal."

And that "Thus, the General Council of Notaries, as the holder of the Notarial Electronic Headquarters, which is the electronic means established by the notarial organization for electronic intermediation between notaries and citizens, is responsible for the processing of such images, as a necessary means to ensure compliance with the applicable sectoral regulations related to the notarial function and the

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regarding the obligations of the notary and the Notarial Organization in the area of prevention of money laundering and the financing of terrorism.

And it was informed that "To unsubscribe from this service, the user must access the section 'Edit profile' and check the box 'I do not wish to receive information and updates.' If this option is activated, interested parties may also communicate to the Notarial Portal of the Citizen of the General Council of Notaries their interest in not receiving such communications in the manner indicated in the electronic communications sent to users.

The purpose of processing the data from the image of the national identity document or foreign identity card that, if applicable, the citizen provides in the section 'Edit profile' of the portal is to send it to the notary who will provide the service requested by the citizen, for the fulfillment of their public functions in accordance with the Law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of portal users who have requested notarial services. In any case, once any notarial service requested by the citizen has been completed, the citizen may at any time delete from their profile the national identity document or foreign identity card by checking the box 'Delete DNI/TIE' [...]"

The form also includes two boxes indicating: 1st I have read and accepted the terms and conditions of the Service and, 2nd I have read and accepted the Privacy Policy; although neither of them obtains consent for the retention of the DNI nor refers to or contains any mention that the image of the DNI would be retained.

Furthermore, the inspector in their report states that "when asking the virtual assistant of the portal 'Do I need to upload a copy of my DNI to the platform?', it responds: 'the Portal requires that you have uploaded a copy of your DNI to your Portal profile. To do this, you must access the Portal, in the upper right part of the screen, where your name appears, through the option 'edit profile', access the section 'DNI/NIE Document', the button 'Renew images' appears - you must upload them in png format and

click on 'Save changes'. When accessing the profile again, the attached images will be visible; if not, they have not been attached correctly.'

It should be noted that the obtaining of the identifying documents of the interested party and their retention would only be covered under the legitimization basis of Article 6.1.c) when their retention is necessary for the notaries; although it would never legitimize their retention by the General Council of Notaries.

On the other hand, regarding the modifications in the Privacy Policy, this is a circumstance that has occurred after the opening of the present sanctioning procedure.

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And regarding the interested party's consent for the data of the copy of the ID card to remain in the Notarial Electronic Headquarters, it should be noted that this circumstance must be analyzed in light of the principle of data minimization. Consent must be obtained in the terms required by the GDPR, and any data processing, in addition to having a legal basis, must respect the data protection principles outlined in Article 5 of the RGPD for the processing to be considered lawful.

Once again, we refer to Report 172890/2018 when it states: "Personal data processing, as it constitutes an incident in a fundamental right (art. 18.4 CE), is subject to a series of principles, such as the principle of purpose limitation, according to which personal data shall be collected for specific, explicit, and legitimate purposes and shall not be processed further in a manner incompatible with those purposes; or the principle of data minimization, according to which personal data shall be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed; and lastly, the principle of accuracy, according to which personal data shall be accurate, and, where necessary, kept up to date."

4. In relation to the infringement of Article 38 of the GDPR, the responding party considers that the accusation made by the AEPD is based on a conjecture, a conflict of interest, which has not been substantiated.

First of all, it must be established that the DPO of the responding party is ANCERT, which in turn has the status of data processor.

ANCERT, in addition to being the Data Protection Officer of the responding party, is also the data processor for it, as it is responsible for the technological development and maintenance of its portal, as well as (among other functions) issuing certificates so that citizens can access the service of publication and consultation of electronic copies of notarial documents.

Now, both roles cannot coincide in the same person; one cannot be DPO and data processor at the same time, as both roles have different functions and responsibilities; while the data processor is the natural or legal person who processes data on behalf and at the direction of the data controller, the DPO is an independent and autonomous figure that acts as a point of contact between the data controller or data processor and the supervisory authorities, as well as with the data subjects regarding the processing of their personal data.

That is to say, ANCERT acts as the data processor for the responding party, supervising for the latter, as DPO, what it has carried out as the data processor.

In this case, a clear conflict of interest is inferred between both roles: that of the data processor and that of the DPO. The latter cannot inform, advise, and supervise the activity that it is developing as the data processor.

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treatment for the data controller, as it implies a clear conflict of interest between the assigned

functions, compromising the independence of the DPO.

Therefore, those functions that are inherent to the role of the data processor compromise the independence and autonomy that is essential for the DPO to exercise their functions; on the other hand, there may not be incompatibility between the DPO and the performance of other functions within the organization assigned to the controller or processor, but it must be understood that these must be specific tasks or duties, and it must be clear that these other functions can in no case generate a conflict of interest, nor create confusion between both roles.

It is also advisable to refer to the guidelines on data protection officers adopted by the Article 29 Data Protection Working Party, adopted on December 13, 2016, and last revised and adopted on April 5, 2017:

“Article 38, paragraph 6, allows DPOs to ‘perform other tasks and duties’. However, it requires that the organization ensures that ‘such tasks and duties do not lead to a conflict of interest.’”

The absence of a conflict of interest is closely linked to the requirement to act independently. Although DPOs may have other functions, they may only be entrusted with other tasks and duties if these do not lead to conflicts of interest.

This means, in particular, that the DPO cannot hold a position in the organization that leads them to determine the purposes and means of processing personal data. Due to the specific organizational structure of each organization, this must be considered on a case-by-case basis.

As a general rule, conflicting positions within an organization may include senior management positions (such as CEO, COO, CFO, medical director, head of marketing, head of human resources, or IT director) but also other lower positions in the organizational structure if such positions lead to the determination of the purposes and means of processing.

Furthermore, a conflict of interest may also arise, for example, if a DPO is asked to represent the controller or processor in court in cases related to data protection.

Depending on the activities, size, and structure of the organization, it may be advisable for controllers and processors to:

- determine the positions that could be incompatible with the role of DPO;
- develop internal rules to this effect to avoid conflicts of interest;
- include a more general explanation about conflicts of interest;
- declare that their DPO has no conflict of interest regarding their functions as DPO, as a means of raising awareness about this requirement;
- include safeguards in the organization’s internal rules and ensure that the job announcement for the DPO position or the service contract is as follows:

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sufficiently precise and detailed to avoid a conflict of interest. In this context, it should also be noted that conflicts of interest can take various forms depending on whether the DPO is hired internally or externally.”

And to conclude, the responding party has informed the AEPD of the appointment of a new DPO in place of ANCERT, which implies the confirmation and acknowledgment that there was a conflict of interest in the performance of the functions assigned to the DPO by the party holding the status of data processor, calling into question the necessary independence and autonomy in the performance of their duties.

Therefore, the allegations made by the responding party cannot be accepted and must be dismissed.

5. Finally, the responding party on 11/07/2024 submitted an Expert Report on the processing of the copy of the ID card in the Citizen Notarial Portal, dated June 10, 2024.

As stated in the aforementioned document, “due to the processing of an administrative procedure by the AEPD regarding the processing of the citizen's ID card copy in the Citizen Notarial Portal, the Technological Center of Notaries is proceeding to carry out a review of the processing in all services offered to the public.”

Upon completion of this review, the Technological Center of Notaries proceeds to the realization and execution of an improvement project to minimize the processing of the ID card copy, limiting such processing to the service of "Videoconference for electronic authorization" only when the citizen has a valid appointment, necessary to comply with the requirements of Law 11/2023."

As previously mentioned, Article 17.3 of the Notarial Law establishes that:

"1. The granting and authorization may be carried out through videoconference as a means for the exercise of the notarial public function, in the following acts or legal transactions:

- a) Commercial policies. In this case, the sending of the policy by the credit institution to the notarial electronic headquarters will imply its consent to the documented transaction, unless otherwise provided in the text of the policy.
- b) The incorporation of companies, appointments, and commercial powers of all kinds provided for in commercial legislation, as well as the granting of any other corporate act, provided that in the case of contributions from partners to the share capital, they are monetary.
- c) Powers of representation for procedural actions before public administrations, as well as electoral powers, and powers for specific acts. Authorization by videoconference of general or preventive powers will not be possible.
- d) The revocation of powers, except for general preventive powers.
- e) Payment letters and cancellations of guarantees.
- f) Minutes of general meetings and those of reference in the strict sense.

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g) The testimonies for signature legitimization.

h) The wills executed during a declared epidemic while the obligation of confinement is in effect.

i) The declarations of new construction without the extinction of condominium, nor the adjudication of property, and the division of horizontal property.

j) The conciliation, unless the notary considers the physical presence necessary for the proper conclusion of the proceedings.

k) Those acts and legal transactions for which, according to their nature, regulations are established.

2. The grantor shall access the application available at the notarial electronic headquarters using the electronic identification systems provided for in Article 9 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations. This application must guarantee the principles of technological neutrality and interoperability for all those who access its use.

3. At the time of granting via videoconference, the notary must display the document to the appearing party through the platform, so that they can exercise their right to read it, without prejudice to the alternative reading by the notary and the advice that must be provided regarding its content.

4. If the grantor does not have an electronic signature, they may be provided with one free of charge, in accordance with the means provided for in Article 10 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations. The provided system must limit its scope and validity to the public document subject to authorization or intervention.

5. The notary must deny the intervention or authorization of the document when the requirements established in the Notary Law are not met.

6. Finally, the notary shall authorize the document with their qualified electronic signature.

The Notarial Citizen Portal is, according to the claimed party, "the tool through which companies and individuals can access the notarial electronic headquarters to benefit from various notarial managements and services with the same security and guarantees as if they were going to the notaries, but with the agility and facilities inherent to digital operations."

After the checks carried out, the report indicates that,

To access the services, it is necessary for the interested party to be registered, using the established form for this purpose, and it is not necessary to upload a copy of the ID, unless they have an appointment for videoconference for electronic granting.

However, for some of the services offered to citizens, it is not required to provide a copy of the ID (copies of deeds, signature legitimization, mortgage loans, videoconference for advice), while for others (videoconference for electronic authorization) it is only required when the citizen has a valid appointment.

And it concludes that:

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After reviewing the handling of the copy of the ID card for all services offered to the public through the Citizen Notarial Portal and the intervention by notaries via Signo, it is concluded that following the implementation of the improvement project for the application of the Citizen Notarial Portal aimed at minimizing the handling of the ID card copy, such handling has been limited solely to the service of "Videoconference for electronic authorization" of the Citizen Notarial Portal only when the citizen has a valid appointment, necessary to comply with the requirements established in Law 11/2023.

Thus, it is certified that the General Council of Notaries, holder of the Citizen Notarial Portal, can only process the ID card data (NIF/NIE) to provide the technological service of making it available to the notary who has scheduled an appointment for a "Videoconference for electronic authorization," and it is not possible for that data to be accessed or manipulated except for that provision, since there is no management application for the ID cards, there are no authorized users who can access them, neither by the General Council of Notaries nor by the Technological Center of Notaries that administers the Portal, and therefore technically access to said Portal cannot be made to carry out any action related to the ID cards, that is, they cannot be viewed or extracted, since it is the system itself that redirects the image to the Notary once the appointment is accepted, unless it involves necessary interventions to resolve technical incidents due to a malfunction of the aforementioned technological service.

Therefore, it must be understood that the user's ID card is only requested when opting for a "Videoconference for electronic authorization" service. Furthermore, access would only be enabled for the notary who is to carry out the procedure. However, this does not exclude that at the time of the opening of this sanctioning procedure, the operation of the portal did not respect the principle of legality.

Finally, it should be noted that the Expert Report does not certify that only the chosen notary to carry out any of the notarial services is the only one who can access the images of the ID card, as tests have only been conducted with 1 Notary user; it is also not certified the specific measures in case of confidentiality breach. Are the ID card copies encrypted? Nor is it certified that tests have been conducted for each of the services and procedures offered.

IV

Response to the allegations to the Proposal for Resolution

1. The respondent alleges their disagreement with the Proposal and that the situation analyzed in it does not correspond at all with reality, incurring in contradiction and omitting the fact that on 11/09/2023 the reform enacted in the Notarial Law came into force.

However, such statements cannot be accepted; the Proposal already includes the approval of Law 11/2023, of May 8, for the transposition of

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Directives of the European Union regarding the accessibility of certain products and services,

migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and that in accordance with section 5 of its Additional Provision Eighteenth, came into force on 09/11/2023, and that despite the modifications introduced by the aforementioned law, the facts subject to the claim and that led to the subsequent sanctioning procedure occurred prior to the entry into force of the modifications introduced by law 11/2023.

Furthermore, it is stated in the Proposal that regarding the identification and preservation of identifying documents of the interested parties involved in notarial acts, nothing changes, since the notary, in accordance with notarial legislation, is the one who must verify the documentation submitted for the identification of the grantor. Therefore, the currently applicable legislation does not grant the CGN the authority to preserve the DNIs of the affected parties, allowing the Council to carry out only the necessary processing operations to make the DNI available to the Notary who will carry out the procedure.

The Proposal for Resolution literally includes the articles that have been modified and incorporated into the LN. However, if what the responding party intends is that the entry into force of the aforementioned reform should be considered as not having committed violations of personal data protection regulations, according to articles 6.1, 13, and 38.6 of the GDPR, and that their actions or conduct should be exempted, such a possibility is impracticable.

It should be noted that after the aforementioned reform, the SEN will be integrated into the General Council of Notaries, being general and unique at the national level, corresponding to it the ownership, development, management, and administration thereof. Its technical characteristics will be communicated to the General Directorate of Legal Security and Public Faith. It must be accessible and available to citizens through secure communication networks.

It was also noted the incorporation of the new article 17 ter. to facilitate digital communication between the notary and the interested party requiring any service, offering them the possibility of maintaining a videoconference in an appropriate, private, and secure environment, guaranteeing confidentiality in communications, stating the following:

- “2. The grantor will access the application opened in the notarial electronic headquarters using the electronic identification systems provided for in article 9 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations. This application must guarantee the principles of technological neutrality and interoperability for all those who access its use.
3. At the time of granting via videoconference, the notary must display the document to the appearing party through the platform, so that they can exercise their right to read it, without prejudice to the alternative reading by the notary and the advice that must be provided regarding its content.
4. If the grantor does not have an electronic signature, they may be provided with one free of charge, in accordance with the means provided in article 10 of Law 39/2015, of October 1, on Common Administrative Procedure of Public Administrations. The provided system must limit its scope and validity to the public document subject to...

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authorization or intervention. 5. The notary must deny the intervention or authorization of the document when the prerequisites established in the Notarial Law are not met. 6. Finally, the notary will authorize the document with his qualified electronic signature.”

Therefore, it does not mention the possibility that the Council may retain copies of the ID cards of the appearing parties. Moreover, Article 37 of the Notarial Law, in its section 2, establishes that:

- “2. It is the responsibility of each Notarial College to adopt the necessary measures to preserve the protocols and books of its notarial territory in perfect condition, and must communicate to the General Council of Notaries for its submission to the General Directorate of Legal Security and Public Faith

their location and the measures adopted for their custody and preservation.

In this regard, the law does not confer any custody power or obligation to the Council, and, on the other hand, it merely states that a legislative reform has occurred, but does not specify how the aforementioned reform may affect the situation posed in this specific case being examined.

It appears in the procedure that the claim was submitted on 14/12/2022, and that after being forwarded to the party being claimed for their knowledge and allegations, it was admitted for processing on 14/03/2023.

After carrying out the appropriate preliminary investigative actions for the clarification of the facts in question by the acting inspector, the alleged infringements of Articles 6.1, 13, and 38.6 of the GDPR were determined, classified under Articles 83.5.a), 83.5.b), and 83.4.a) of the GDPR, and the sanctioning procedure was opened on 14/03/2024; therefore, the agreement to initiate the sanctioning procedure does not respond to any extravagance or arbitrariness, nor to a whim as the party being claimed seems to imply.

The party being claimed states that in the process of reviewing compliance with data protection regulations, modifications have been introduced that affect the case being analyzed and that these have not been taken into account, but rather are even overlooked.

However, it should be noted that the aforementioned modifications were introduced subsequently and provided either in the allegations made regarding the initiation agreement or even later; thus, if we consider the violation of Article 38.6 of the GDPR, whose attribution the party being claimed considers a mere conjecture, it was on 11/07/2024 (as stated in the proven facts) that the party being claimed submitted the Certification in which the appointment of the new DPO was agreed upon.

It was already indicated in the Proposal that both figures (processor and DPO) have different regulations and cannot coincide in the same person; one cannot be both DPO and processor at the same time, as both have distinct functions and responsibilities; thus, while the processor is the natural or legal person who processes data on behalf and at the mandate of...

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of the data controller, the DPO is an independent and autonomous figure that acts as a point of contact between the controller or processor and the supervisory authorities, as well as with the data subjects regarding the processing of their personal data.

However, ANCERT, as the processor, acted by supervising for the controller, as DPO, what it had carried out as the processor, presuming a manifest and notorious conflict of interest.

On the other hand, the very designation of the DPO in place of ANCERT came to recognize the existence of a conflict of interest in the performance of their functions by someone who simultaneously held the position of Processor and Data Protection Officer.

In this same sense, the allegations of the responding party regarding the modification of the Privacy Policy must be interpreted, as it considers that the Proposal does not mention anything about the new Privacy Policy.

Well, the argument made here is also not sustained, as was pointed out in the Proposal, since the responding party already acknowledges the violation of Article 13 of the GDPR, given that, as was indicated in that, "How should the proposal for the revision of the existing content in the Privacy Policy be understood...?"

Therefore, it is true that the responding party has modified the information provided to users of the portal, and regarding the retention of copies of the ID cards, the following is indicated:

In the purpose section, it will include: (iii) Likewise, the Notarial Portal of the Citizen will retain a copy of your National Identity Document if, after the granting or authorization mentioned in the previous section, you give your consent to such retention solely for the purpose of that the copy may be sent to

the same or another notary when necessary for the granting or authorization of any other act or legal transaction for which such a copy is necessary. For this, it will be necessary for you to express this by checking the box that will be shown to you at that moment.

In any case, if you give your consent, the data will be retained in the Portal duly encrypted, so that neither the General Council of Notaries nor any notary who has not intervened in the granting or authorization of an act or transaction requested by you can access it.

At all times, you may revoke your consent by checking the box "Delete ID" within your profile."

And in the purpose section, it will state: "(iii) The legal basis for the processing for the purpose numbered as (iii) will be the consent given by you, which you may revoke at any time."

But it is also true that at the time of the opening of the procedure, the situation was different and that the modifications made to the Privacy Policy and

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The claims made by the responding party are subsequent to the opening of the sanctioning procedure.

2. The responding party alleges that the legitimizing norms for processing provided in the GDPR do not legitimize it for the processing of the data corresponding to the image of the ID card in the SEN.

The General Council of Notaries bases the retention of the copy of the ID card on the consent of the interested party. According to what is stated in its Privacy Policy on the portal, the legal basis for processing is the consent of the interested parties.

Therefore, the General Council of Notaries bases the processing of data on the consent of the interested party, but for the consent to be considered validly given, it is necessary that it be collected in accordance with the specifications in Article 4.11 of the GDPR, which defines "the consent of the interested party" as "any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her."

However, it is not recorded that such consent was collected in accordance with the provisions of Article 4.11 of the GDPR, nor is there any form or document indicating that consent was granted "by an affirmative act reflecting a free, specific, informed and unambiguous expression of the will of the interested party to accept the processing of personal data concerning him or her."

Moreover, regarding the modification of the information that will be provided to users of the portal, as well as concerning the retention of copies of ID cards, the responding party has stated that it will also proceed to include an explicit consent checkbox for the processing of data corresponding to the copies of the ID card or equivalent document.

Therefore, it is evident that, at the date of the opening of the present sanctioning procedure, the portal did not collect valid consent for the retention of the copy of the ID card by the General Council of Notaries. It is reiterated that these proposed modifications are subsequent to the opening of the sanctioning procedure.

It is stated that the modification will consist of the following:

"In the purpose section, it will be included: (iii) Likewise, the Notarial Portal of the Citizen will retain a copy of your National Identity Document if, after the granting or authorization mentioned in the previous section, you provide your consent for such retention solely for the purpose of that the copy may be sent to the same or another notary when necessary for the granting or authorization of any other act or legal transaction for which such a copy is necessary. For this, it will be necessary for you to express this by checking the box that will be shown to you at that moment."

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In any case, if you give your consent, the data will be stored on the Portal duly encrypted, so that

neither the General Council of Notaries nor any notary who has not participated in the granting or authorization of an act or transaction requested by you can access it.

At all times, you may revoke your consent by checking the box "Delete DNI" within your profile."

And in the purpose section, it will state: "(iii) The legal basis for the processing for the purpose numbered as (iii) will be the consent provided by you, which you may revoke at any time."

The retention of the image of the DNI is a processing operation and as such must have a legitimate basis. The sanctioning procedure opened against the claimed party is not based on the alleged use and utilization that it carries out of said copy to make it available to the Notary who will carry out the procedure, but rather on the retention for purposes other than those that motivate the submission of the same by the interested party without a valid legitimate basis.

The same claimed party acknowledges that its retention must have a basis that legitimizes it, intending to base it on consent, but as already indicated, consent to be valid must be granted under the terms established in Article 4.11 of the GDPR, which was not the case here.

3. The claimed party argues that the Resolution Proposal carries out an interpretation of the LN and LPBCFT when analyzing the legal basis of the treatments.

However, this is not an interpretative issue but rather what is established by the LN and the LPBCFT in their wording; it has already been indicated that the LN, in its Article 23, establishes that notaries have the obligation to identify the individuals who require their intervention and that the LPBCFT requires the retention of identifying documents by notaries based on the legitimate basis of Article 6.1.c) of the GDPR.

In Report 172890/2018 it is stated that "(...), notarial legislation requires notaries to attest in public deeds that they know the parties or have ensured their identity by the supplementary means established in the laws and regulations (Article 23 LN). In fact, notarial legislation does not require the notary to retain a copy of the supplementary means of identification that they may use, since the same legislation establishes that it will be sufficient for the notary to affirm that they know the parties, for which they may use the DNI or other means. Thus, the supplementary means of identification are only "in the absence of the personal knowledge of the notary."

On the other hand, the LPBCAT, applicable to notaries as obligated subjects, establishes, in its Article 3 that:

"1. The obligated subjects shall identify all individuals or legal entities who intend to establish business relationships or intervene in any operations.

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2. Prior to the establishment of the business relationship or the execution of any operations, the obligated subjects shall verify the identity of the participants through reliable documents (...)."

The Regulation of the LPBCAT states in its Article 6, Reliable Documents for formal identification purposes, that:

"1. The following shall be considered reliable documents for formal identification purposes:

a) For individuals of Spanish nationality, the National Identity Document.

(...).

And regarding the retention of the identifying documents used by the obligated subjects to identify their clients, Article 25 of the LPBCAT states:

"2. The obligated subjects, with the exceptions that are determined by regulation, shall store copies of the identification documents referred to in Article 3.2 on optical, magnetic, or electronic supports that guarantee their integrity, the correct reading of the data, the impossibility of manipulation, and their adequate conservation and location. (...)"

And in its Article 28.2 it establishes that:

"2. The obligated subjects shall store copies of the reliable documents of formal identification on

optical, magnetic, or electronic supports. (...)"

Therefore, these regulations do not impose any obligation on the CGN to retain copies of the DNIs. It has also been noted that the PNC allowed the following procedures:

- i. Request a copy of notarial documents.
- ii. Request a new appointment.
- iii. Access an appointment by videoconference.
- iv. Incorporation of companies.
- v. Management of copies.
- vi. Signature legitimization.
- vii. Sending simple copies for moratorium.
- viii. Mortgage loans.
- ix. Will.
- x. Find your notary.

But not for all the services offered was it necessary to upload images of the national identity document, although for the "Incorporation of Companies," "Management of copies," "Signature legitimization," and "Wills" it was necessary to upload such images to initiate the procedure.

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However, the virtual assistant of the portal, when asked "Do I need to upload a copy of my ID to the platform?", responded that "If when trying to carry out any procedure from the PNC, it asks you to attach a copy of the ID, it is because in order to carry out the procedures from the Portal, it is necessary that you have uploaded a copy of your ID to your Portal profile," meaning that it was indicated that if it was necessary to attach a copy of the ID, it would be retained until the user decided to delete it once the procedures were completed.

Furthermore, according to the expert report on the processing of the ID copy, dated June 10, 2024, not all services offered to citizens require the submission of a copy of the ID (copies of deeds, signature legitimization, mortgage loans, videoconferencing for advice). However, the copy of the ID was also being requested for these procedures.

The responding party has indicated that "In any case, once any notarial service requested by the citizen is completed, they can delete the national identity document or foreign identity card from their profile at any time by checking the box 'Delete ID/TIE', which leads to the previous conclusion; if the copy is not deleted, it is retained by the system.

Therefore, it is reiterated that according to the LPBCAT, the obligated subjects are the notaries and not the Council, so the legal obligation to retain the ID falls on the notaries who are the only ones who can be registered in the legitimization database of article 6.1.c), and what is obvious is that the retention of the ID by the Management of copies or the Legitimization of signatures cannot be supported by the LPBCAT.

4. The responding party alleges that there is no legal basis for the processing of data based on the consent of the interested party.

However, it has already been stated that article 6.1 refers to the different legal bases that legitimize the processing of personal data.

And it has been pointed out that: Consequently, an appropriate legal basis for the retention of the ID would be that established in art. 6.1.c) GDPR, that is, when the processing is necessary for compliance with a legal obligation applicable to the data controller (the notary). Therefore, while the processing of personal data consisting of the identification of individuals would be lawful both because it is necessary for the execution of a contract and because it is imposed by notarial legislation, the processing of personal data consisting of the retention of the ID would only be lawful when specifically established by law, which as we have seen does not impose it in all cases, but only when it concerns "clients," that is, individuals who will be part of legal relationships, and this only in cases where the regulations on the prevention of money laundering are applicable.

Therefore, the allegations made by the responding party on this point only serve to confirm that the retention carried out by the Council of the copy of the ID, outside the cases contemplated by the money laundering law, requires the existence of a legitimization basis.

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Thus, it is stated that consent is granted solely and exclusively to the fact that, when deemed appropriate by the interested party, they expressly request that this ID card be kept associated with their profile, given that they consider that in the future they may enter into other acts or transactions whose granting or authorization imposes compliance with the identification and retention duties established in the notarial regulations and anti-money laundering legislation (...)"

It is also included in the document Privacy Policy, which states that the legal basis for processing is that collected in Article 6.1 a) of the GDPR, when the interested party has given their consent for the processing of their data for one or more specific purposes.

However, as indicated, the CGN did not obtain consent that could be considered valid as it did not meet the conditions required by Article 4.11 of the GDPR. The retention of the ID card image, which is still a processing of personal data, lacked a legal basis for legitimacy as valid consent was not obtained, because the issuance of a declaration of will through which the processing of personal data is accepted must be carried out through a clear affirmative action and must be free, specific, informed, and unambiguous.

None of the documents provided by the CGN or obtained by this AEPD demonstrate the obtaining of consent in the terms set out in Article 4.11 of the GDPR; although the forms do have checkboxes to accept the Terms and Conditions of the service and the Privacy Policy, at no time is the express consent of the interested party to retain the copy of the ID card, which must be presented solely for the purpose of carrying out the procedure intended with the selected notary, recorded.

Therefore, it has been evidenced and not refuted that, at the time of the opening of the initiation agreement, consent was not granted in accordance with what is indicated in Article 4.11 of the GDPR. As noted in the previous point, in statements from the responding party, it is recorded that such circumstance has been modified. It is indicated that likewise, an express consent checkbox will be included for the processing of data corresponding to copies of the ID card or equivalent document. Furthermore, the Expert Report submitted states that "After reviewing the processing of the copy of the ID card for all services offered to citizens through the Notarial Portal of the Citizen and the intervention by notaries through Signo, it is concluded that after the execution of the project to improve the application of the Notarial Portal of the Citizen with the aim of minimizing the processing of the copy of the ID card, such processing has been limited solely to the service of 'Videoconference for electronic authorization' of the Notarial Portal of the Citizen only when the citizen has a valid appointment, necessary to comply with the requirements established in Law 11/2023 (...)"

5. The responding party considers that the procedure should be archived; however, such a statement is meaningless; in the present case, it has been

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sufficiently substantiated, without being undermined by the responding party, the violations of the regulations regarding the protection of personal data, without any indication of which repeal of the legal regime the responding party is appealing to.

It is also not true that the AEPD has ignored the new Privacy Policy mentioned in the allegations regarding the initiation agreement, as well as the fact that the appointment of the DPD was communicated, since these are late and untimely modifications that, except in the case of the DPD,

have not been substantiated and did not prevent the violations contemplated.

Moreover, as has been pointed out, the AEPD does not interpret the regulations referred to by the responding party; it merely records what they establish; since it cannot overlook or fail to substantiate its criticism or rejection of the facts attributed to the Council, in which the AEPD precisely assumes its competence, to ensure compliance with data protection regulations and control their application.

In conclusion, after analyzing the allegations and statements made by the responding party, all of them must be rejected.

6. Finally, it should be noted that the Proposal for Resolution suggested ordering the responding party to adopt those appropriate and adequate measures to adjust its actions to the regulations on the protection of personal data, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

However, the responding party has subsequently designated a new DPD, differentiated from the processor, in order to guarantee its autonomy and independence and to avoid situations that could lead to a conflict of interest.

Therefore, the proposed measures concerning Article 38.6 must fall away.

On the other hand, regarding the new Privacy Policy and compliance with Article 6.1 of the GDPR, the measures referred to in the Proposal for Resolution are maintained since the suggested modifications, subsequent to the opening of the procedure, which would modify the information provided to users of the portal regarding the retention of copies of the ID cards have not been substantiated, being considered mere statements of the party.

V

First obligation breached: Article 6.1 of the GDPR

Article 6 of the GDPR “Lawfulness of processing” states in its paragraph 1 the following:

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“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

1. The PNC states for the purposes of information on data protection that the controller is the General Council of Notaries. On 20/10/2023, the PNC (<https://www.portalnotarial.es>) allowed the following procedures:

- i. Request a copy of notarial documents.
- ii. Request a new appointment.
- iii. Access an appointment via videoconference.
- iv. Incorporation of companies.

- v. Management of copies.
- vi. Signature legitimization.
- vii. Sending simple copies for moratorium.
- viii. Mortgage loans.
- ix. Will.
- x. Find your notary.

At least for access to the services “Incorporation of Companies,” “Management of Copies,” “Signature Legitimization,” and “Wills,” it was necessary to upload images of the national identity document to initiate the procedure.

The Preliminary Investigation Report states that when asking the virtual assistant of the portal “Do I need to upload a copy of my ID to the platform?”, the response is “If when trying to carry out any procedure from the PNC, it asks you to attach a copy of the ID, it is because to carry out the procedures from the...”

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Portal, it is necessary that you have uploaded a copy of your ID to your Portal profile,” that is, the attached copy was retained by the system, unless the user decided to delete it once the procedures were completed.

Thus states the responding party, “In any case, once any notarial service requested by the citizen has been completed, they can delete the national identity document or foreign identity card from their profile at any time by checking the box 'Delete DNI/TIE.'”

2. The retention of the image of the identifying document constitutes a processing operation of personal data and, like all processing of personal data, requires a legal basis for legitimacy. It should be noted, regarding access and verification by notaries of the identifying documents of natural persons, that the Notary Law of 28/05/1862, as in force on 20/10/2023, provided in its article 23 the following:

“The notaries shall certify in public deeds and in those records that by their special nature require it that they know the parties or have ensured their identity by the supplementary means established in the laws and regulations.

The supplementary means of identification, in the absence of the personal knowledge of the Notary, shall be the following:

a) The affirmation of two persons, with civil capacity, who know the grantor and are known to the Notary, being those responsible for the identification.

b) The identification of one of the contracting parties by the other, provided that the Notary certifies knowledge of the latter.

c) The reference to identity cards or documents with a photograph and signature issued by public authorities, whose purpose is to identify individuals.

In this case, the Notary shall be responsible for the concordance of the personal data, photograph, and signature printed on the exhibited identity document with those of the appearing party.

d) The comparison of the signature with the undisputed one from a previous public instrument in which the Notary has certified knowledge of the signer.

The Notary who certifies knowledge of any of the grantors, misled about their identity by their own malicious actions or those of other persons, shall not incur criminal liability, which shall only be required when proceeding with intent. In such a case, the Notary, without prejudice to the above, shall be immediately subjected to a disciplinary correction procedure with the obligation to compensate for the damages caused by such error to third parties involved.

If it concerns public deeds relating to acts or contracts by which ownership and other real rights over real estate are acquired, declared, constituted, transmitted, encumbered, modified, or extinguished, or any others with tax implications, the appearing parties shall prove before the authorizing Notary...

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their tax identification numbers and those of the persons or entities they represent, which will be recorded in the deed.

In the case of public deeds by which an entity is created or constituted, with or without legal personality, the Notary shall mandatorily include the tax identification number in those deeds. Prior to the authorization or intervention of any public deed, record, or policy, the notary shall consult the list of revoked tax identification numbers. The Notary must refrain from authorizing or intervening in any public instrument intended to be granted by a legal entity with a revoked tax identification number in accordance with the provisions of tax regulations.

Thus, when an interested party approaches a notary to carry out any procedure or notarial act, the notary proceeds to certify that they know the individual or proceeds to use some supplementary means of identification, one of these supplementary means being the DNI (National Identity Document). The regulations transcribed regarding the DNI only refer to the exhibition of the DNI and not to its retention. Therefore, from this regulation, no legal basis can be inferred for the CGN (General Notarial Council) to retain the copies provided by the interested parties.

3. It should be noted that the retention of the copy of the DNI derives from the Law on the prevention of money laundering and acts of terrorism.

Thus, Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism (LPBCAT), applicable to notaries as obligated subjects, establishes, in its article 3 that:

“1. The obligated subjects shall identify all natural or legal persons with whom they intend to establish business relationships or engage in any operations. Under no circumstances shall the obligated subjects maintain business relationships or carry out operations with natural or legal persons who have not been duly identified. In particular, the opening, contracting, or maintenance of accounts, savings books, safety deposit boxes, assets, or numbered, coded, anonymous instruments or with fictitious names is prohibited.

2. Prior to establishing the business relationship or executing any operations, the obligated subjects shall verify the identity of the parties involved using reliable documents. In the event that the identity of the parties involved cannot be verified using reliable documents at the first instance, the provisions of article 12 may be considered, unless there are risk elements in the operation.

Regulations shall establish the documents that must be deemed reliable for identification purposes.”

The Regulation for the development of the LPBCAT states in its article 6, Reliable documents for formal identification, that:

“1. The following shall be considered reliable documents for formal identification purposes:

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a) For individuals of Spanish nationality, the National Identity Document.

For individuals of foreign nationality, the Residence Card, the Foreigner Identity Card, the Passport, or, in the case of citizens of the European Union or the European Economic Area, the document, letter, or official identity card issued by the authorities of origin. The identity document issued by the Ministry of Foreign Affairs and Cooperation for the staff of diplomatic and consular representations of third countries in Spain shall also be a valid document for the identification of foreigners. Exceptionally, obligated subjects may accept other personal identity documents issued by a governmental authority, provided they have adequate guarantees of authenticity and include a photograph of the holder.

Regarding the retention of the identification documents used by obligated subjects to identify their clients, Article 25 of the LPBCAT establishes in its section 2 that:

“2. The obligated subjects, with the exceptions determined by regulation, shall store copies of the identification documents referred to in Article 3.2 on optical, magnetic, or electronic media that

guarantee their integrity, the correct reading of the data, the impossibility of manipulation, and their adequate preservation and location. (...)"

For its part, the Development Regulation of the LPBCAT also provides in its Article 28.2 that:

"2. The obligated subjects shall store copies of the formal identification documents on optical, magnetic, or electronic media. Likewise, copies of the documents evidencing the execution of deposits, withdrawals, or transfers of funds from an account at a credit institution and those that certify the order or receipt of fund transfers made at payment institutions or currency exchange operations may also be stored on optical, magnetic, or electronic media.

Obligated subjects who, including agents, employ fewer than 10 people and whose annual turnover or annual balance sheet does not exceed 2 million euros are exempted, and may opt to maintain physical copies of the identification documents. This exception shall not apply to obligated subjects integrated into a business group that exceeds these figures.

4. Therefore, the anti-money laundering legislation requires the notary to retain these identification documents, and this processing operation linked to the LPBCAT will be covered by the legal basis of Article 6.1.c) of the GDPR. However, the obligation to retain the copy of the DNI is not on the CGN but on the notary, so the CGN cannot rely on this regulation for the retention of copies of the DNIs.

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Furthermore, the regulations for the prevention of money laundering do not apply to all operations involving notaries, as occurs, for example, with notarial or registration acts that lack economic content or relevance (Supreme Court ruling of February 2, 2022, R.C. 86/2021). That is to say, in all these operations, the obligation to retain identification documents (DNI) would not arise, as they are excluded from the legislation that specifically addresses this matter.

Thus, Article 4, Formal Identification, of the Development Regulation of the LPBCAT states that:

"1. Obligated subjects shall identify and verify, through reliable documents, the identity of any natural or legal persons who intend to establish business relationships or engage in any occasional operations whose amount is equal to or greater than 1,000 euros, with the exception of the payment of lottery prizes and other games of chance, where identification and verification of identity shall proceed in relation to those prizes whose amount is equal to or greater than 2,500 euros, without prejudice to the provisions of Law 13/2011, of May 27, on the regulation of gambling, and its development regulations. In money transfer operations and management of transfers, identification and verification of identity must be carried out in all cases.

Verification of identity shall not be mandatory in the execution of operations when there are no doubts regarding the identity of the participant, their participation in the operation is evidenced by their handwritten or electronic signature, and such verification has been previously carried out in establishing the business relationship.

2. Verification of identity shall be carried out prior to the establishment of the business relationship or the execution of occasional operations, without prejudice to the provisions of Article 12 of Law 10/2010, of April 28."

Therefore, since there are cases in which the obligation to identify and verify the reliable document is not required, it will also not be necessary for this document to be retained by the notary.

In this regard, outside the cases provided for in the money laundering regulations, the retention of such identification documents will require a different legal basis than that set forth in Article 6.1.c) of the GDPR, as there is no legal obligation to retain copies of identification documents in the indicated cases. The retention of the DNI by the General Council of Notaries will also require a legal basis, as there is no regulatory provision that supports this processing.

4.- According to the information provided to users in the privacy policy of the CGN portal, the legal basis for processing would be the consent of the interested parties.

The General Council of Notaries bases the processing of data on the consent of the interested party, but for the consent to be considered validly given, it must be collected in accordance with what is

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of the GDPR defines "the consent of the data subject" as "any manifestation of free, specific, informed, and unambiguous will by which the data subject accepts, either by a statement or a clear affirmative action, the processing of personal data concerning them."

Regarding the manner of obtaining the consent of the data subject for the processing in question, Recital 32 of the GDPR clarifies, for the purposes here, that it "must be given by a clear affirmative act that reflects an unambiguous, specific, informed, and free manifestation of will by the data subject to accept the processing of personal data concerning them" and requires that consent be granted "for all processing activities carried out for the same or the same purposes. When the processing has multiple purposes, consent must be given for all of them," and in the present case, it is not recorded that this has been done.

Concerning the retention of data, the privacy policy states that "The data provided by citizens to the portal will be retained until the General Council of Notaries is requested to revoke the consent for their processing by checking the box 'I wish to unsubscribe from the portal,' needing to access the 'Edit profile' section and check that box, and in any case, they will be retained for the time necessary to fulfill the purpose for which they were collected and to determine any potential liabilities that may arise from the processing of data."

As for the purpose of processing the image of the national identity document or foreign identity card that, if applicable, the citizen provides in the "Edit profile" section of the portal, it was indicated that "it is to carry out the referral of the same to the notary who will provide the service requested by the citizen, for the fulfillment of their public functions in accordance with the Law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of the portal users who have requested notarial services. In any case, once any notarial service requested by the citizen has been completed, they can at any time delete from their profile the national identity document or foreign identity card by checking the box 'Delete DNI/TIE.'"

In this regard, the General Council of Notaries, at the very least, retained the image of the national identity document or foreign identity card until the data subject withdrew their consent, for which a legal basis is needed.

Well, from the checks carried out by this AEPD, it is confirmed that the CGN did not obtain consent in the terms set out in Article 4.11 of the GDPR.

Article 4, paragraph 11, of the GDPR defines consent as: "any manifestation of free, specific, informed, and unambiguous will by which the data subject accepts, either by a statement or a clear affirmative action, the processing of personal data concerning them."

Therefore, consent must be free, specific, informed, and unambiguous.

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However, in this case, the consent was not free; the data subjects were not offered the possibility to accept some processing operations and reject others. Thus, the data subjects had to provide a copy of their ID to carry out certain procedures and had to accept the Terms and Conditions of the service and the Privacy Policy, but they could not choose to accept or reject separately the processing operation consisting of the retention of the ID image.

The consent was also not specific. According to the Guidelines 5/2020 of the EDPB on consent in the sense of Regulation (EU) 2016/679 version 1.1 adopted on 04/05/2020:

"57. If the data controller relies on Article 6(1)(a), the data subjects must always give their consent for a specific purpose for the processing of the data. In line with the concept of purpose limitation, with

Article 5(1)(b), and with Recital 32 (...) Consent must be given through a specific expression of will, that is, it must be given 'for one or more specific purposes,' which did not occur in this case, as no information was provided to the data subjects about the purpose pursued by retaining a copy of their ID."

Furthermore, it was also not informed. When the requirements related to informed consent are lacking, the consent is not valid, and the controller cannot base the processing on Article 6(1)(a) of the GDPR. According to the aforementioned EDPB guidelines on consent, for consent to be informed, it is necessary that at least the following information is provided:

- i. the identity of the data controller,
- ii. the purpose of each of the processing operations for which consent is sought,
- iii. what (type of) data will be collected and used,
- iv. the existence of the right to withdraw consent,
- v. information about the use of data for automated decision-making in accordance with Article 22(2)(c), when relevant, and
- vi. information about the possible risks of data transfers due to the absence of an adequacy decision and appropriate safeguards, as described in Article 46" (paragraph 64).

However, in this case, the data subjects were not even presented with information about the possibility of giving or refusing consent for the retention of the ID image.

Finally, the consent was not unequivocal.

The EDPB Guidelines indicate that:

"75. The GDPR clearly states that consent requires a statement from the data subject or a clear affirmative action, which means that consent must always be given through an action or statement. It must be evident that the data subject has given their consent to a specific data processing operation. (...)

77. A 'clear affirmative action' means that the data subject must have acted deliberately to give their consent to that particular processing (...)"

However, although the form contained two checkboxes, they referred to the Terms and Conditions of the service and the Privacy Policy; at no time was a clear affirmative action required from the data subject to accept that the CGN retained a copy of their ID.

As stated in the proven facts, the Form only contains two checkboxes, accepting both the Terms and Conditions of the service and the Privacy Policy.

O I have read and accept the Terms and Conditions of the Service.

O I have read and accepted the Privacy Policy.

In short, at no time was the express consent of the data subject collected, fulfilling the requirements of Article 4.11 of the GDPR, to retain the copy of the ID presented exclusively for the purpose of carrying out the procedure intended before the selected notary.

Consequently, and in accordance with the available evidence, it is considered that the proven facts constitute an infringement of Article 6.1 of the GDPR.

VI

Qualification of the infringement of Article 6.1 of the GDPR

The infringement attributed to the controller is classified under Article 83.5(a) of the GDPR, which considers an infringement the violation of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 constitute infringements, as well as those that are contrary to this organic law."

And in its Article 72, it considers for the purposes of prescription that they are: "Infringements considered very serious:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the infringements that are considered very serious and will prescribe in three years..."

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they constitute a substantial violation of the articles mentioned therein and, in particular, the following:
(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

VII

Second obligation breached: infringement of Article 13 of the GDPR

Article 13 of the GDPR, Information to be provided when personal data are obtained from the data subject, establishes the following:

“1. When personal data relating to a data subject are obtained from the data subject, the controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw the

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consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In addition to the information that the data controller must provide to the data subjects, it should be noted that Article 12.1 of the GDPR establishes how the information must be provided, which should be offered to the data subjects in a concise, transparent, intelligible, and easily accessible form, using clear and plain language and in accordance with Article 12 of the GDPR.

The recitals of the GDPR reiterate the same idea. Thus, Recital 61 states that “Data subjects should be provided with information on the processing of their personal data at the time when the data are obtained from them or, if the data are obtained from another source, within a reasonable period, depending on the circumstances of the case (...).” And Recital 62 states that “However, it is not necessary to impose an obligation to provide information when the data subject already has the information (...).”

In any case, it should be noted that according to Recital 60 of the GDPR, it is the responsibility of the controller to “provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed.”

In the present case, during the registration process of a user on the platform, a form must be filled out with the identifying and contact details of the person registering, and while it is not necessary for the data subject to provide identifying documentation at the time of registration, it is mandatory for the request of certain services.

As stated in Recital III, the obtaining of such identifying data and the image of the documentation by the notaries would be covered under the legal basis of Article 6.1(c) and not under consent, as notaries are obliged to verify identity in accordance with Article 23 of the Notary Law. And to retain a copy of the ID/NIE to comply with the provisions of the Law of April 28, on the prevention of money laundering and financing of terrorism.

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terrorism. However, the privacy policy of the portal only states that the basis for legitimacy is consent without differentiating each of the bases under which the request for the image of the ID card of the interested parties is covered. Furthermore, regarding the purpose, it is stated that “The purpose of processing the data of the image of the national identity document or foreign identity card that, if applicable, the citizen provides in the ‘Edit profile’ section of the portal is to carry out the submission of the same to the notary who will provide the service requested by the citizen, for the fulfillment of their public functions in accordance with the Law, as well as the fulfillment of such functions by the General Council of Notaries for the proper management of the portal users who have requested notarial services. In any case, once any notarial service requested by the citizen has been completed, they can at any time delete from their profile said national identity document or foreign identity card by checking the box “Delete DNI/TIE.”

In this regard, no information is provided about the purposes for which the Council retains the images of the identification documents of the interested parties until they withdraw their consent by deleting the DNI/TIE.

It must be taken into account that the retention of information is a distinct processing operation from the collection of data and the communication of these to the notary who will provide the requested service. However, the interested parties are not informed of the purpose of the processing after the image of the DNI has been sent to the notary.

In accordance with the evidence available, it is considered that the facts revealed constitute a violation of Article 13 of the GDPR.

VIII

Classification of the infringement of Article 13 GDPR

The infringement of Article 13 of the GDPR is classified in Article 83.5.b) of the GDPR, which states:

“Infringements of the following provisions shall be sanctioned (...)
b) the rights of the data subjects pursuant to Articles 12 to 22; (...)
(...)”

For the purposes of prescription, the LOPDGDD qualifies this conduct in Article 74.a) as a minor infringement and sets a prescription period of one year for it. The provision states:

“Minor infringements shall be considered and shall prescribe after one year, the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.”

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(...)

IX

Third obligation breached, Article 38 of the GDPR

Article 38 of the GDPR, "Position of the Data Protection Officer," establishes in its paragraph 6 the following:

“(...)”

6. The data protection officer may perform other functions and tasks. The controller or processor shall ensure that such functions and tasks do not lead to a conflict of interest.

(...)”

Likewise, Article 39 of the GDPR, Functions of the Data Protection Officer, in its paragraph 1 provides the following functions for the Data Protection Officer:

“1. The data protection officer shall have at least the following functions:

a) to inform and advise the controller or processor and the employees involved in the processing of their obligations under this Regulation and other data protection provisions of the Union or of the Member States;

b) to monitor compliance with the provisions of this Regulation, other data protection provisions of the Union or of the Member States, and the policies of the controller or processor regarding the protection of personal data, including the allocation of responsibilities, awareness-raising and training of staff involved in processing operations, and the corresponding audits;

c) to provide advice requested regarding the data protection impact assessment and to monitor its implementation in accordance with Article 35;

d) to cooperate with the supervisory authority;

e) to act as a contact point for the supervisory authority on issues related to processing, including the prior consultation referred to in Article 36, and to consult, where appropriate, on any other matter.

(...)”

Also, Article 36 of the LOPDGDD, Position of the Data Protection Officer, in its paragraph 2 establishes that:

“(...)”

2. When it concerns a natural person integrated into the organization of the controller or processor, the data protection officer may not be removed or sanctioned by the controller or processor for performing their functions unless they have acted with intent or gross negligence in their exercise.

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will guarantee the independence of the data protection officer within the organization, and any conflict of interest must be avoided.

(...)"

The DPO of the respondent party was ANCERT, which stated in response to the transfer of the complaint that:

"It should also be noted that this data protection officer, who is also responsible for the technological development and maintenance of said portal, has supervised at all times the technical and functional requirements established for the registration and operation of the same, including the obligation to upload images of the identity documents required for the request for public services to the notaries, reaching the conclusion, at all times, that the use and retention of such images by the portal is entirely necessary for the notarial collective, the General Council of Notaries, and notaries, in application of the applicable regulations set forth in the body of this document. Furthermore, it should be noted that this technological portal, like the rest of the electronic services developed by Ancert for said Council, has been duly certified in accordance with the National Security Scheme [the corresponding certificate is attached, marked as document No. 1]."

It is evident that ANCERT, in addition to being the Data Protection Officer of the respondent party, was also in charge of processing for it, as it is responsible for the technological development and maintenance of the portal of the respondent party.

Thus, ANCERT acted as the processor for the respondent party, supervising for the latter, in addition as DPO, what they have done as the processor.

A clear confusion is inferred between the roles of the processor and the Data Protection Officer. The latter cannot inform, advise, and supervise the activity that he is carrying out as the processor for the controller, because it implies a clear conflict of interest between the assigned functions, causing the Data Protection Officer to lose his independence and autonomy in the exercise of his functions.

It is worth referring to the guidelines on data protection officers adopted by the Article 29 Data Protection Working Party, adopted on December 13, 2016, and last revised and adopted on April 5, 2017:

"Article 38, paragraph 6, allows DPOs to 'perform other functions and tasks.' However, it requires that the organization ensures that 'such functions and tasks do not give rise to a conflict of interest.'"

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The absence of a conflict of interest is closely linked to the requirement to act independently. Although DPOs may have other functions, they may only be assigned other tasks and responsibilities if these do not lead to conflicts of interest.

This means, in particular, that the DPO cannot hold a position in the organization that leads him to determine the purposes and means of processing personal data. Due to the specific organizational structure of each organization, this must be considered on a case-by-case basis.

As a general rule, conflicting positions within an organization may include senior management positions (such as CEO, COO, CFO, medical director, head of marketing, head of human resources, or head of the IT department) but also other lower positions in the organizational structure if such positions lead to the determination of the purposes and means of processing.

Furthermore, a conflict of interest may also arise, for example, if a DPO is asked to represent the controller or the processor in court in cases related to data protection.

Depending on the activities, size, and structure of the organization, it may be advisable practice for controllers and processors to:

- determine the positions that could be incompatible with the DPO function;
- develop internal rules for this purpose to avoid conflicts of interest;
- include a more general explanation about conflicts of interest;

- declare that their DPO has no conflict of interest regarding his functions as DPO, as a means of raising awareness about this requirement;
- include safeguards in the internal rules of the organization and ensure that the job announcement for the DPO position or the service contract is sufficiently precise and detailed to avoid a conflict of interest. In this context, it should also be taken into account that conflicts of interest can take various forms depending on whether the DPO is hired internally or externally.”

Moreover, to conclude as stated in the grounds II, the respondent party has informed the AEPD on 11/07/2024 of the appointment of a new DPO to replace ANCERT, which confirms and acknowledges the existence of a conflict of interest in the performance of its functions by the person who simultaneously held the position of Processor and Data Protection Officer.

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Therefore, it is considered that the known facts could constitute an infringement, attributable to the responsible party, for violation of Article 38.6 of the GDPR.

X

Qualification of the infringement of Article 38.6 of the GDPR

The infringement of Article 38.6 of the GDPR entails the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43 (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be considered serious and shall be subject to a two-year statute of limitations: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

“(...)”

w) Failing to enable the effective participation of the data protection officer in all matters relating to the protection of personal data, not supporting them, or interfering with the performance of their functions.

“(...)”

XI

Applicable regime to the claimed party

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

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Likewise, Article 77 “Applicable regime to certain categories of controllers or processors” of the

LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the processing relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortia.
- k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for the processing that have not been duly addressed is accredited, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Bulletin or the corresponding autonomous bulletin.

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4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, as applicable, to the analogous institutions of the autonomous communities.

In the case examined, the present sanctioning procedure arises from the infringements committed by the General Council of Notaries. Thus, as stated in the preceding grounds, the Council has violated the regulations regarding the protection of personal data in Articles 6, 13, and 38 of the GDPR. The General Council of Notaries is a public law corporation that carries out processing whose purposes are related to the exercise of public law powers.

It should be noted that the LOPDGDD, in accordance with the provisions of Article 83.7 of the GDPR, provides in its Article 77 the possibility of declaring the infringement and establishing, where

appropriate, the measures necessary to correct the processing of personal data that do not comply with the regulations, when the controllers or processors listed in paragraph 1 of the aforementioned article commit any of the infringements referred to in Articles 72 to 74 of the LOPDGDD.

Additionally, Article 58 of the GDPR in its paragraph 2 d) states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”

XII

Adoption of Measures

Upon confirming the infringements of Articles 13, 6.1, and 38.6 of the GDPR, it is considered appropriate to impose on the controller the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

The text of the agreement specifies what the infringements committed were and the facts that give rise to the violation of data protection regulations, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the party being claimed, as it is based on proactive responsibility and a risk-based approach on how to comply with the GDPR and the LOPDGDD. Regardless of the above, it is appropriate to require the party being claimed to communicate the measures taken to prevent incidents like those that led to the infringements within six months from the finality of the sanctioning resolution.

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of Articles 6.1 and 13 of the GDPR; among them, determining the legal basis for the services for which a copy of users' identity documents is required, as well as modifying the information provided to users to comply with the requirements of Article 13 of the GDPR.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the GENERAL COUNCIL OF NOTARIAT, with NIF ***NIF.1, has infringed the provisions of Articles 6.1, 13, and 38.6 of the GDPR, infringements classified in Articles 83.5.a), 83.5.b), and 83.4.a) of the GDPR.

SECOND: TO ORDER the GENERAL COUNCIL OF NOTARIAT, pursuant to Article 58.2.d) of the GDPR, within 6 months from the date this resolution becomes final and enforceable, to demonstrate that it has implemented the measures as outlined in the Legal Basis XII of this resolution, and to inform this Agency, within the same period, about the measures adopted.

THIRD: TO NOTIFY this resolution to the GENERAL COUNCIL OF NOTARIAT.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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